International Labour Organization

MEFLMF/2025/6

Guidelines for fair labour market services for migrant fishers*

Meeting of Experts to adopt Guidelines for fair labour market services for migrant fishers
(Geneva, 27–31 October 2025)

Sectoral Policies Department
Geneva, 2025

*In accordance with established procedures, these guidelines will be submitted to the 356th Session (March–April 2026) of the Governing Body of the ILO for its consideration.

▶ Contents

Page

Preface 5

Guidelines for Fair Labour Market Services for Migrant Fishers 6

I. Purpose and scope 6

II. Definitions 8

III. Guidelines 9

A. Guidelines for all States 9

B. Guidelines for States of recruitment 12

C. Guidelines for States of origin 18

D. Guidelines for flag States 21

E. Guidelines for port States 31

F. Guidelines for coastal States 33

G. Guidelines for labour recruiters 34

H. Guidelines for fishing vessel owners 37

I. Guidelines for migrant fishers and their representatives 42

Appendices

I. Tools to facilitate the implementation of the Guidelines 45

II. Guidance on data and statistics relating to migrant fishers 70

▶ Preface

The Tripartite Meeting on Issues Relating to Migrant Fishers was held from 18 to 22 September 2017 in Geneva, bringing together the tripartite constituents to discuss the challenges faced by migrant fishers. The Meeting concluded that migrant fishers are often at risk of forced labour and serious decent work deficits such as: abusive and fraudulent recruitment and placement practices; child labour; isolation and abuse of vulnerability; abandonment; absence of a written fisher's work agreement; underpayment and withholding of wages; retention of identity documents; blacklisting when asserting rights; violence and intimidation; illegal transfer at sea; excessive working hours; and other abusive working and living conditions. It recognized the need to ensure the effective enforcement of migrant fishers' fundamental rights at work and their access to justice, irrespective of their migrant status; and the importance of having a clear division of roles and responsibilities for enforcement and inspection between States of recruitment, States of origin, flag States, port States and coastal States. The Meeting adopted a resolution mandating the ILO to develop guidelines for fair labour market services for migrant fishers, which should contain guidance for fishing vessel owners, cross-border labour market services and fishers seeking jobs on board foreign fishing vessels, including model contracts and guidance on complaint mechanisms. It also invited the Office to develop guidance on collecting data and statistics regarding migrant fishers (see "Labour market data concerning migrant fishers" below). [1]

Accordingly, at its 353rd Session (March 2025), the Governing Body of the ILO decided to convene a Meeting of Experts to adopt Guidelines on fair labour market services for migrant fishers, scheduled to take place in Geneva from 27 to 31 October 2025. [2]

[1] ILO, Conclusions on the promotion of decent work for migrant fishers, Tripartite Meeting on Issues relating to Migrant Fishers, TMIMF/2017/7, 2017; and ILO, Resolution on issues relating to migrant fishers, Tripartite Meeting on Issues relating to Migrant Fishers, TMIMF/2017/8, 2017.

[2] ILO, *Sectoral meetings held in 2024 and proposals for sectoral work in 2025–27,* GB.353/POL/3, 2025.

▶ Guidelines for Fair Labour Market Services for Migrant Fishers

I. Purpose and scope

1. The purpose of the present Guidelines is to assist governments and the social partners in promoting fair, effective and sustainable labour market services for migrant fishers by providing guidance to and clarifying the roles of all relevant stakeholders in terms of recruitment processes, work agreements, complaint procedures, enforcement measures and other essential aspects aimed at ensuring fair treatment, safeguarding the rights of migrant fishers and supporting employers in recruiting and retaining a suitable skilled workforce. [3] They are intended to assist States of recruitment; States of origin; flag States; port States; coastal States; labour recruiters; fishing vessel owners; and migrant fishers and their representatives in ensuring fair recruitment and employment practices that protect migrant fishers' rights and enable employers to recruit and retain skilled and motivated crews efficiently and lawfully. Fishing vessel owners and employers are crucial in creating a decent working environment for all, developing and implementing fair recruitment and management practices that provide decent employment opportunities and invest in capacity-building for migrant fishers.

2. The Guidelines are accompanied by a set of eight tools to facilitate their implementation (Appendix I). They are supplemented by guidance on methodologies and considerations to strengthen the collection of data on migrant fishers and improve the availability of relevant statistics to support policymaking and monitoring (Appendix II).

3. Nothing set out in these Guidelines should be understood as lowering the protections afforded to migrant fishers by existing international labour standards and other ILO instruments, national laws, collective agreements, multilateral or bilateral agreements, or arrangements on labour migration and social security. The present Guidelines are not legally binding. They are not subject to ratification or to monitoring by the supervisory mechanisms established under the ILO Constitution.

4. These Guidelines are intended to be a reference tool for principles that can be reflected in the design and implementation of policies, strategies, programmes, legislation, administrative measures and social dialogue mechanisms for fair labour markets for migrant fishers, and that can be adapted to different national systems and circumstances.

5. Implementation of these Guidelines at the national level should occur in consultation between the social partners and the government. All States should engage in social dialogue with the representative organizations of employers and workers concerned, and in particular the representative organizations of fishing vessel owners and of fishers, where they exist. Social dialogue, based on the respect of freedom of association and the effective recognition of the right to collective bargaining, includes all types of negotiation, consultation or exchange of information between, or among, representatives of governments, employers and workers on issues of common interest relating to economic and social policy. Social dialogue plays a key role in the design and implementation of effective policies to ensure fair labour markets for migrant fishers.

6. These Guidelines apply to employment relationships and labour market services within commercial fishing operations, with a focus on industrial fishing. It is important to note that

[3] ILO, *Sectoral meetings held in 2024 and proposals for sectoral work in 2025–27*, GB.353/POL/3, 2025.

artisanal, or small-scale, fishing usually differs significantly in structure and scale to industrial fishing, as it is often informal, family-based and community-driven. As such, certain recommendations contained in the Guidelines may not be directly applicable to those contexts or may require adaptation to reflect the unique realities and governance structures of such fisheries.

7. These Guidelines cover fishers working on board fishing vessels flying the flag of a State other than the State of their own nationality or of permanent residence. This means that, in certain cases, they also cover internal migrant fishers, namely those who have migrated internally from one region to another within their own country to work on fishing vessels flying a foreign flag. The principles presented in these Guidelines, while primarily intended to address the situation of migrant fishers, should apply equally to all fishers, where relevant. All fishers working in international waters, regardless of nationality and flag of their vessel, deserve equal consideration and protection.

8. These Guidelines are based on and reflect in full the principles, rights and obligations set out in the Work in Fishing Convention (No. 188) and Recommendation (No. 199), 2007. They should be read in conjunction with these instruments, the ten fundamental Conventions [4] and other instruments relevant to the fishing sector, including, but not limited to, the Migration for Employment Convention (Revised) (No. 97) and Recommendation (No. 86), 1949; the Migrant Workers (Supplementary Provisions) Convention (No. 143), 1975, and the Migrant Workers Recommendation (No. 151), 1975; the Private Employment Agencies Convention, 1997 (No. 181); the Employment Service Convention, 1948 (No. 88); and the Violence and Harassment Convention, 2019 (No. 190).

9. A non-exhaustive reference list of international labour standards most relevant to fair labour market services for migrant fishers is provided as Tool 8 (Appendix I).

10. They should also be read in conjunction with the relevant provisions of other applicable international instruments and guidelines, including but not limited to:

- the ILO Declaration on Fundamental Principles and Rights at Work (1998), as amended in 2022;
- the ILO *General principles and operational guidelines for fair recruitment and Definition of recruitment fees and related costs*, 2019;
- the ILO *Guidelines on flag State inspection of working and living conditions on board fishing vessels*, 2017;
- the ILO *Guidelines for port State control officers carrying out inspections under the Work in Fishing Convention, 2007 (No. 188)*, 2011;
- the United Nations Convention on the Law of the Sea, 1982, in particular Articles 73, 94, 99, 110, and 111.

[4] The fundamental Conventions are: the Forced Labour Convention, 1930 (No. 29), and its Protocol of 2014; the Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87); the Right to Organise and Collective Bargaining Convention, 1949 (No. 98); the Equal Remuneration Convention, 1951 (No. 100); the Abolition of Forced Labour Convention, 1957 (No. 105); the Discrimination (Employment and Occupation) Convention, 1958 (No. 111); the Minimum Age Convention, 1973 (No. 138); the Occupational Safety and Health Convention, 1981 (No. 155); the Worst Forms of Child Labour Convention, 1999 (No. 182); and the Promotional Framework for Occupational Safety and Health Convention, 2006 (No. 187).

II. Definitions

11. For the purpose of these Guidelines:

(a) "consultation" means consultation by the competent authority with the representative organizations of employers and workers concerned, and in particular the representative organizations of fishing vessel owners and of fishers, where they exist; [5]

(b) "fisher" means every person employed or engaged in any capacity or carrying out an occupation on board any fishing vessel, including persons working on board who are paid on the basis of a share of the catch but excluding pilots, naval personnel, other persons in the permanent service of a government, shore-based persons carrying out work aboard a fishing vessel and fisheries observers; [6] this definition excludes security personnel hired by the fishing vessel owner;

(c) "fisher's work agreement" means a contract of employment, articles of agreement or other similar arrangements, or any other contract governing a fisher's living and working conditions on board a vessel, [7] including digital or electronic agreements when recognized by the competent authorities at national level;

(d) "fishing vessel" or "vessel" means any ship or boat, of any nature whatsoever, irrespective of the form of ownership, used or intended to be used for the purpose of commercial fishing; [8]

(e) "fishing vessel owner" means the owner of the fishing vessel or another organization or person, such as the manager, agent or bareboat charterer, who has assumed the responsibility for the operation of the vessel from the owner and who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on fishing vessel owners, regardless of whether any other organization or person fulfils certain of the duties or responsibilities on behalf of the fishing vessel owner; [9]

(f) "labour recruiter" refers to labour recruiters for migrant fishers, including public and private recruitment and placement services and private employment agencies (see definitions); labour recruiters can take many forms, whether operating for profit or non-profit and within or outside legal and regulatory frameworks; [10]

(g) "migrant fisher" means a fisher working on board a fishing vessel flying the flag of a country other than the country of his or her own nationality or country of permanent residence; [11]

(h) "private employment agency" refers to any natural or legal person, independent of the public authorities, which provides the labour market services consisting of employing migrant fishers with a view to making them available to a third party, who may be a natural or legal person that assigns their tasks and supervises the execution of these tasks, [12] in line with Convention No. 188 (which refers to Convention No. 181, Article 1, paragraph 1(b)). The

[5] Convention No. 188, Art. 1(c).

[6] Convention No. 188, Art. 1(e).

[7] Convention No. 188, Art. 1(f).

[8] Convention No. 188, Art. 1(g).

[9] Convention No. 188, Art. 1(d).

[10] ILO, *General principles and operational guidelines for fair recruitment and Definition of recruitment fees and related costs*, 2019, Part 1(II), Definitions and terms.

[11] ILO, *Decent work for migrant fishers*, Report for discussion at the Tripartite Meeting on Issues Relating to Migrant Fishers 2017, section 2.2, 8.

[12] Convention No. 188, Art. 22(4); Convention No. 181, Art. 1(1)(b).

characteristic of these labour market services is that the private employment agency – not the fishing vessel owner – is the formal employer of the migrant fisher;

(i) "recruitment" encompasses all activities related to the advertisement of and dissemination of information about work on fishing vessels, the selection, transport and placement of migrant fishers for work on fishing vessels, and the return of migrant fishers to their State of origin. This applies to both jobseekers and those in an employment relationship; [13]

(j) "recruitment and placement service" means any person, company, institution, agency or other organization, in the public or the private sector, which is engaged in recruiting migrant fishers on behalf of, or placing migrant fishers with, fishing vessel owners, [14] without becoming a party to the employment relationships which may arise therefrom;

(k) "recruitment fees or related costs" refers to any fees or costs incurred in the recruitment process, in order for migrant fishers to secure employment or placement on a fishing vessel, regardless of the manner, timing or location of their imposition or collection; [15]

(l) "State of origin" means the State of which the migrant fisher is a national or resident, or in which he or she is otherwise domiciled;

(m) "State of recruitment" means the State in the territory of which the relevant labour recruiter operates;

(n) "violence and harassment" in the world of work refers to a range of unacceptable behaviours and practices, or threats thereof, whether a single occurrence or repeated, that aim at, result in, or are likely to result in physical, psychological, sexual or economic harm, and includes gender-based violence and harassment. [16]

III. Guidelines

A. Guidelines for all States

12. All States should:

(a) acknowledge the principle of shared responsibility for the labour rights, human rights and welfare of migrant fishers among States of recruitment, States of origin, flag States, port States and coastal States, and extend that shared responsibility to all actors of the supply chain benefiting from the labour of migrant fishers; [17]

(b) ratify and effectively implement the fundamental Conventions and, in consultation with social partners and following regulatory gap analysis, the up-to-date international labour standards most relevant to fair labour market services for migrant fishers;

(c) respect, promote and realize, for all fishers and vessels operating under their jurisdiction, in good faith and in accordance with the ILO Constitution the principles concerning the fundamental rights which are the subject of those Conventions, even if they have not ratified

[13] ILO, *General principles and operational guidelines*, Part 1(II), Definitions and terms.

[14] Convention No. 188, Art. 1(k).

[15] ILO, *General principles and operational guidelines*, Part 1(II), Definitions and terms.

[16] Convention No. 190, Art. 1(1)(a) and (b).

[17] Association of Southeast Asian Nations (ASEAN), *ASEAN Guidelines on the Placement and Protection of Migrant Fishers*, 2024, para. 28.

the Conventions in question, arising from the very fact of membership in the Organization, as per ILO 1998 Declaration as amended in 2022;

(d) ratify and effectively implement Convention No. 188 and Recommendation No. 199;

(e) ratify and effectively implement:

(i) the International Maritime Organization (IMO) *Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977*;

(ii) the IMO International Convention on Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel (STCW-F Convention), 1995 (as amended);

(iii) the Food and Agriculture Organization of the United Nations (FAO) *Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing*, revised edition, 2016;

(f) communicate the expectation that all actors in the fishing sector within their jurisdiction respect the fundamental principles and rights at work for all migrant fishers; [18]

(g) actively promote and engage in effective social dialogue, including cross-border social dialogue where possible, in its various forms, based on the fundamental principles of the right to freedom of association and the effective recognition of the right to collective bargaining, and the other fundamental principles and rights at work, to ensure that the fundamental principles and rights at work and relevant ratified international labour standards protect and apply to all migrant fishers; [19]

(h) ensure that all interventions aimed at providing fair labour market services for migrant fishers are gender-sensitive and gender-responsive, uphold fair treatment with respect to gender and nationality, and protect and promote the rights of migrant fishers, including women; [20]

(i) have coordinated gender-sensitive labour migration policies that are consistent with relevant international labour standards or, as the case may be, that comply with ratified international labour Conventions. This should be done by competent authorities, in consultation with employers' and workers' organizations;

(j) promote the application of the ILO *General principles and operational guidelines for fair recruitment and Definition of recruitment fees and related costs, 2019*;

(k) promote the application of the *United Nations (UN) Guiding Principles on Business and Human Rights* and the Tripartite Declaration of Principles concerning Multinational Enterprises and Social Policy, as amended in 2022 (MNE Declaration) throughout the fishing sector;

(l) ensure policy coherence in public and private compliance initiatives and partnerships, and align such initiatives and partnerships with relevant international labour standards and other relevant tools; [21]

[18] TMIMF/2017/7, para. 15(c).

[19] TMIMF/2017/7, paras 13 and 14(b).

[20] *ASEAN Guidelines on the Placement and Protection of Migrant Fishers*, para. 23.

[21] TMIMF/2017/7, para. 14(d).

(m) promote a whole-of-government approach by ensuring national-level interministerial coordination and referral among relevant government authorities that have a bearing on the rights of migrant fishers; [22]

(n) strengthen labour administration systems and systems for the inspection of labour conditions on board fishing vessels to ensure compliance with relevant laws and regulations, and consider using a strategic compliance approach with proactive, targeted and risk-based interventions;

(o) ensure the availability of a sufficient number of qualified inspectors for the inspection of labour conditions on board fishing vessels and consider the use of recognized organizations for undertaking inspections, if need be;

(p) ensure that migrant fishers have proper knowledge of their labour rights, their right to safe migration and their right to occupational safety and health (OSH), and provide guidance to employers and to migrant fishers so as to help them comply with legal obligations in that regard. This should be done by competent authorities, in consultation with employers' and workers' organizations;

(q) establish effective, free-of-charge, expeditious, accessible and trusted:

(i) complaint mechanisms for cases of alleged violations of migrant fishers' rights, safeguarding the confidentiality of their complaints; and

(ii) grievance and other dispute resolution mechanisms;

and guarantee due process rights of the parties involved, including the right of all parties to be heard, throughout the process.

(r) ensure that migrant fishers, irrespective of their presence or legal status in a State, have access to the above complaint and grievance mechanisms, and that effective and appropriate remedies are provided where abuse has occurred; [23]

(s) promote regional and international cooperation through information-sharing, joint enforcement efforts and harmonized standards concerning labour conditions on board fishing vessels. Information-sharing should respect confidentiality of commercial and personal data;

(t) adhere to applicable regional instruments, including those adopted by regional fisheries management organizations and regional fisheries advisory bodies;

(u) in the event of incidents related to the human rights, safety and health, or treatment of migrant fishers, cooperate with relevant States, investigate, document and provide support to the migrant fishers concerned, irrespective of their presence or legal status in a State, including during investigation, for example by collecting, preserving and sharing evidence, facilitating access to justice and remedies, and providing legal aid, including through bilateral or multilateral agreements on mutual legal assistance. Information-sharing should respect confidentiality of commercial and personal data;

(v) take the necessary measures to ensure that competent authorities are entitled not to prosecute or impose penalties on victims of forced or compulsory labour for their

[22] *ASEAN Guidelines on the Placement and Protection of Migrant Fishers*, para. 38.

[23] TMIMF/2017/7, para.14(e).

involvement in unlawful activities which they have been compelled to commit as a direct consequence of being subjected to forced or compulsory labour; [24]

(w) harness the potential of digital technology to advance fair recruitment and decent work (for example, for information campaigns, wage protection systems or remittance channels), while duly assessing inherent risks and respecting confidentiality and the protection of personal data;

(x) develop and implement bilateral, regional and multilateral agreements and arrangements to protect the labour rights and human rights of migrant fishers, ensuring the engagement of the social partners, and consistency with relevant international labour standards. Governments, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations.

B. Guidelines for States of recruitment

Regulation of labour recruiters

13. The State of recruitment should:

(a) ensure that migrant fishers have access to an efficient, adequate and accountable system for finding employment on board a fishing vessel, and designate the competent authority or authorities to be responsible in that regard;

(b) ensure that the relevant legislation applies to all migrant fishers and covers all aspects and stages of the recruitment process, including in relation to the advertisement of and dissemination of information about work on fishing vessels, the selection, training, transport and placement of migrant fishers into employment, and the return of migrant fishers to their State of origin;

(c) ensure that private recruitment and placement services and private employment agencies (in line with Convention No. 188, which refers to Convention No. 181, Article 1, paragraph 1(b)) operate in conformity with a single standardized system of licensing or certification or other form of regulation. [25] This system should be effective, transparent and should allow migrant fishers and other interested parties to verify the legitimacy of such services and their placement offers;

(d) establish, maintain or modify such a standardized system only after consultation; [26]

(e) prohibit, by penalty, labour recruiters from charging migrant fishers, be it directly or indirectly, in whole or in part, any fees for recruitment or placement or for providing employment, or related costs, such as: [27]

(i) medical costs, including for medical examinations, tests or vaccinations;

(ii) insurance costs for life, health and safety, including enrolment in welfare funds;

(iii) costs for skills, qualification and language tests, including location-specific certification;

[24] Protocol of 2014 to the Forced Labour Convention, 1930, Art. 4(2).

[25] Convention No. 188, Art. 22(2).

[26] Convention No. 188, Art. 22(2).

[27] Convention No. 188, Art. 22(3)(b); ILO, *General principles and operational guidelines*, Principle 7 and Part 2(II)(B), para. 12.

(iv) costs for required training and orientation, including pre-departure or post-arrival orientation;

(v) costs for personal protective equipment;

(vi) travel, lodging and subsistence costs within or across national borders in the recruitment process, including for training, interviews, consular appointments, relocation and repatriation;

(vii) administrative costs or application and service fees, including fees for representation and fees for services aimed at preparing, obtaining or legalizing fisher's work agreements, identity documents, passports, visas, background checks, security and exit clearances, banking services, and work and residence permits;

(f) prohibit labour recruiters from using means, mechanisms or lists intended to prevent or deter migrant fishers from engaging for work[28] and penalize such acts;

(g) specify, taking into account (e) and (f):

(i) the conditions of the licence, certificate or similar authorization under which private labour recruiters can operate;

(ii) the conditions under which such authorization may be suspended or withdrawn in case of violation of relevant laws or regulations; [29]

(iii) the conditions for a ban from operating in its territory; and

(iv) clear eligibility criteria, regular renewal requirements and public disclosure of licensed status or any enforcement actions taken;

(h) ensure that labour recruiters operating in its territory:

(i) verify that the fishing vessel owner has the means to protect migrant fishers from being stranded in a foreign port (for example, financial security);

(ii) take effective measures including by developing and implementing policies, providing training, implementing reporting mechanisms and fostering accountability, to prevent and address violence and harassment, including gender-based violence and harassment, in recruitment and placement processes.

Liability

14. The State of recruitment should:

(a) require labour recruiters to establish a system of protection, by way of insurance, deposit or an equivalent appropriate measure, to compensate migrant fishers for monetary loss that they may incur as a result of the failure of the labour recruiter or the relevant fishing vessel owner under the fisher's work agreement to meet their obligations to the migrant fishers, and ensure that migrant fishers are informed, prior to or in the process of engagement, of their rights under that system and of the compensation procedure;

(b) require private recruitment and placement services to assume obligations to ensure the proper fulfilment by fishing vessel owners, wherever located, of the terms of the fisher's work

[28] Convention No. 188, Art. 22(3)(a).

[29] Convention No. 188, Art. 22(3)(c).

agreements that the fishing vessel owners have entered into with migrant fishers (joint liability).

Fisher's work agreements

15. The State of recruitment should:

(a) ensure that labour recruiters inform migrant fishers, in a language they understand, of their rights and duties under their fisher's work agreements, prior to or in the process of engagement;

(b) ensure that the fisher's work agreement (or an authoritative copy thereof) is in the language of the migrant fisher or is accurately translated in a language that the migrant fisher and the employer understand, and that the necessary information is provided in a clear and comprehensive way, in order to allow the migrant fisher to express his or her free and informed consent;

(c) ensure that labour recruiters make proper arrangements, including by providing sufficient time (minimum 72 hours unless the advice has been obtained earlier), for migrant fishers to review and seek advice on their fisher's work agreements before they are concluded, taking into account language and literacy barriers, so that they are able to comprehend the contents;

(d) ensure that fisher's work agreements are individual, in writing and signed by the migrant fisher and the fishing vessel owner or the authorized representative of the fishing vessel owner, or where the migrant fisher is not employed or engaged by the fishing vessel owner, the fishing vessel owner should have evidence of contractual or similar arrangements; [30]

(e) ensure that the minimum particulars to be included in any fisher's work agreement are determined by law and are in line with Tool 1 taking into account Tool 2 (Appendix I);

(f) ensure that labour recruiters operating in its territory make proper arrangements for migrant fishers to examine their fisher's work agreements in advance of departure and provide all migrant fishers with a copy of their fisher's work agreement immediately after signature by all parties;

(g) prohibit any agreement to forgo the right to repatriation or other rights enshrined in Convention No. 188, and consider any clauses waiving such rights to be null and void;

(h) ensure that fisher's work agreements, including those governed by national law, are enforceable in the flag State and in the State of origin, including through bilateral or multilateral agreements on labour migration;

(i) take measures to ensure that the fisher's work agreement is not substituted or its original terms altered to the detriment of the migrant fisher at any stage, especially upon embarking; measures could include establishing a system of joint verification of fisher's work agreements by the relevant authorities of the State of recruitment and the flag State, or the use of electronic databases whereby fisher's work agreements are logged electronically in the State of recruitment and referred to by flag State authorities, with safeguards for commercial and personal data protection.

[30] Convention No. 188, Art. 20.

Data and statistics

16. The State of recruitment should:

(a) maintain and update a publicly available register of properly licensed recruitment and placement services and private employment agencies;

(b) maintain and update a publicly available list of recruitment and placement services, and private employment agencies, which have had their authorization suspended or withdrawn due to violations, or which have been temporarily or permanently banned from operating in its territory;

(c) ensure that the labour recruiters operating in its territory maintain an up-to-date register of all migrant fishers recruited, placed or posted through them, to be available for inspection by the competent authority, taking into account Tool 6 (Appendix I).

Compliance and enforcement

17. The State of recruitment should:

(a) inform and support labour recruiters in their compliance with national laws and regulations;

(b) effectively exercise its jurisdiction and control over labour recruiters that are established in its territory, to ensure that they operate in compliance with national laws and regulations;

(c) take appropriate steps to prevent, investigate, punish and redress abuses in the recruitment process for migrant fishers through effective policies, legislation, regulations and adjudication;

(d) ensure that labour recruiters are subject to inspections on a regular basis to verify whether or not they are operating in accordance with applicable national laws and regulations or any other measures; and act upon non-compliance, including by issuing penalties or suspending or withdrawing the authorization to operate;

(e) verify, in particular, that:

(i) private labour recruiters are operating under a valid licence, certificate, authorization or other form of regulation;

(ii) banned labour recruiters are effectively prevented from operating in its territory under a new name or legal entity;

(iii) labour recruiters are not charging migrant fishers, be it directly or indirectly, in whole or in part, any recruitment fees or related costs (see "Regulation of labour recruiters", above);

(iv) labour recruiters are not engaged in activities that restrict, or prevent, a migrant fisher from engaging for work;

(v) labour recruiters verify that migrant fishers recruited or placed by them are adequately qualified and trained, in line with generally accepted minimum international standards [31] and hold the documents necessary for the job concerned;

[31] See the STCW-F Convention, the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers (STCW Convention), 1978, and Convention No. 188.

(vi) labour recruiters verify that fisher's work agreements are in accordance with applicable laws and regulations and with any collective bargaining agreement that forms part of the fisher's work agreement;

(vii) labour recruiters examine, respond to and pursue the resolution of any complaint or grievance filed by migrant fishers concerning their activities and advise the competent authority of any unresolved complaint;

(f) verify that private employment agencies are aware of, and comply with, all the responsibilities in respect of migrant fishers that have been allocated to them.

Complaint and grievance mechanisms

18. The State of recruitment should:

(a) establish an effective, free, expeditious, accessible and trusted:

(i) complaint mechanism, safeguarding the confidentiality of complaints made by migrant fishers; and

(ii) grievance and other dispute resolution mechanisms;

(b) ensure that all migrant fishers, irrespective of their presence or legal status in a State, have information about, and access to, the complaint and grievance mechanisms in cases of alleged violations of their rights by labour recruiters;

(c) ensure that adequate and transparent mechanisms and procedures are in place for the investigation, if necessary, of complaints and grievances concerning the activities of labour recruiters, involving, as appropriate, the representative organizations of employers and workers concerned, and in particular of fishing vessel owners and of fishers, where they exist, and ensure that effective and appropriate remedies are provided where abuse has occurred;

(d) guarantee due process rights of the parties involved, including the right of all parties to be heard, throughout the process.

Human rights due diligence

19. The State of recruitment should:

(a) protect migrant fishers against human rights abuses in the recruitment process within their territory or jurisdiction;

(b) exercise human rights due diligence and encourage all actors of the supply chain benefiting from the labour of migrant fishers to conduct human rights due diligence to ensure that human rights are respected throughout the recruitment process;

(c) advise and provide information to labour recruiters not to deploy migrant fishers on a fishing vessel that appears on the illegal, unreported and unregulated fishing vessel lists published by regional fisheries management organizations. [32]

[32] See Stiftelsen Trygg Mat Tracking (TMT), "Combined IUU Vessel List".

Bilateral and multilateral agreements

20. The State of recruitment should:

(a) establish cross-border alliances and reporting mechanisms with relevant flag States and States of origin, with a view to fostering cooperation, information-sharing and communication to address issues concerning migrant fishers effectively. Information-sharing should respect confidentiality of commercial and personal data;

(b) conclude bilateral or multilateral labour migration agreements [33] with relevant flag States and States of origin to ensure that the labour rights and human rights of migrant fishers are protected, including provisions on social protection and references to existing social security agreements, and provisions on the enforceability of fisher's work agreements;

(c) ensure that such agreements:

(i) apply to all areas where the fishing vessels flying the flag of the flag State are authorized to operate, including the high sea or the exclusive economic zones of third countries;

(ii) include mechanisms for the oversight of recruitment and placement and provide for access to complaint mechanisms;

(iii) include mechanisms for monitoring compliance with the terms and conditions of fisher's work agreements;

(iv) are consistent with internationally recognized human rights, including the fundamental principles and rights at work, and the relevant international labour standards, and include robust mechanisms for prevention and law enforcement to combat forced labour and human trafficking;

(v) include the principle of equal treatment between national and non-national fishers, including in terms of remuneration, access to social protection and access to decent conditions of work on board fishing vessels with regard to minimum requirements for work on board; conditions of service; accommodation and food; occupational safety and health protection; and medical care;

(vi) are built upon prior tripartite social dialogue;

(vii) are implemented effectively and are subject to monitoring by the parties;

(d) conclude bilateral or multilateral social security agreements with relevant States to ensure equality of treatment irrespective of nationality, the maintenance of social security rights that have been acquired or are in the process of being acquired by all fishers regardless of residence, and the determination of applicable legislation; [34]

(e) in the absence of protection from the fishing vessel owner and the flag State, provide migrant fishers with social protection for access to medical and health care, and for work-related sickness, injury or death, in accordance with national laws, regulations or practice. [35]

[33] See the Migration for Employment Recommendation (Revised), 1949 (No. 86), Annex, Model Agreement on Temporary and Permanent Migration for Employment, including Migration of Refugees and Displaced Persons.

[34] Convention No. 188, Arts 36 and 37; Equality of Treatment (Social Security) Convention, 1962 (No. 118); Maintenance of Social Security Rights Convention, 1982 (No. 157), and Maintenance of Social Security Rights Recommendation (No. 167) 1983; and ILO, *ILO Multilateral Framework on Labour Migration: Non-binding principles and guidelines for a rights-based approach to labour migration*, 2006.

[35] Convention No. 188, Arts 38 and 39.

Training and awareness-raising

21. The State of recruitment should:

(a) ensure that the responsible actors provide access or referral to adequate sector- and flag State-specific pre-departure training or orientation, at no cost to the migrant fishers, adapted to their assigned responsibilities, in a language that they understand, taking into account the expected duration of the fishing trip and the areas of operation of the vessel, and involving the representative organizations of employers and workers concerned, and in particular the representative organizations of fishing vessel owners and of fishers, where they exist. Governments, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations;

(b) create comprehensible information packages for migrant fishers on migrant fishers' rights and obligations, taking into account language and literacy barriers;

(c) ensure that information on migrant fishers' rights and obligations and an overview of these Guidelines, together with other authoritative information material concerning migrant fishers' rights and obligations, are accessible to all migrant fishers, and are included in the pre-departure training or orientation for migrant fishers, taking into account language and literacy barriers;

(d) ensure that these Guidelines are made available to all migrant fishers in an appropriate language.

C. Guidelines for States of origin

Compliance and enforcement

22. The State of origin should:

(a) designate the competent authority or authorities responsible for migrant fishers;

(b) ensure that its migrant fishers register with the relevant ministry prior to departure; and provide relevant information to the labour attaché in the flag State and, where applicable, the labour attaché in the State where they will embark on their vessels;

(c) provide its embassies or consulates in the most relevant States with the authority to monitor the fisher's work agreements of its migrant fishers and establish service centres staffed by consular officers, to provide information, language training, support and protection in case of labour violations;

(d) facilitate social dialogue among representatives of migrant fishers and fishing vessel owners through respect for, and promotion and realization of, the right to freedom of association and the effective recognition of the right to collective bargaining of legally-binding and enforceable agreements pertaining to grievance redress mechanisms and access to remedy.

Human rights due diligence

23. The State of origin should:

(a) protect migrant fishers against human rights abuses in the recruitment process within its territory or jurisdiction;

(b) exercise and promote human rights due diligence to ensure that human rights are respected throughout the recruitment process.

Training and awareness-raising

24. The State of origin should:

(a) following an assessment of whether or not flag States that have ratified neither Convention No. 188, Convention No. 181 nor the Maritime Labour Convention, 2006, as amended (MLC, 2006) apply standards consistent with Convention No. 188, and until it is satisfied that equivalent standards are being applied, advise migrant fishers who are nationals or resident or otherwise domiciled in its territory, on the fact that the flag State has not ratified the above Conventions, and provide relevant information on its assessment.

(b) advise and provide information to migrant fishers who are nationals or resident or otherwise domiciled in its territory, not to sign on a fishing vessel that appears on the illegal, unreported and unregulated fishing vessel lists published by regional fisheries management organizations;

(c) create comprehensible information packages for migrant fishers on migrant fishers' rights and obligations, taking into account language and literacy barriers;

(d) ensure that the responsible actors provide access or referral to adequate sector- and flag State-specific pre-departure training or orientation, at no cost to the migrant fishers, adapted to their assigned responsibilities, in a language they understand, taking into account the expected duration of the fishing trip and the areas of operation of the vessel, and involving the representative organizations of employers and workers concerned, and in particular the representative organizations of fishing vessel owners and migrant fishers, where they exist. Governments, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations;

(e) ensure that information on migrant fishers' rights and obligations and an overview of these Guidelines, together with other authoritative information material concerning migrant fishers' rights and obligations, are accessible to all migrant fishers, and are included in the pre-departure training or orientation for migrant fishers, taking into account language and literacy barriers;

(f) ensure that these Guidelines are made available to all migrant fishers, in an appropriate language.

Social protection

25. The State of origin should:

(a) ensure that migrant fishers ordinarily resident in its territory, and their dependants to the extent provided in national law, are entitled to benefit from social security protection under conditions no less favourable than those applicable to other workers, including employed and self-employed persons, ordinarily resident in its territory,[36] for example by providing access to the national social security system;

(b) in the absence of protection from the fishing vessel owner and flag State, provide migrant fishers with social protection for access to medical and health care, and for work-related sickness, injury or death, in accordance with national laws, regulations or practice;

(c) build, strengthen and expand sustainable social protection systems, including social protection floors for all, including for migrant fishers and their dependants, taking into

[36] Convention No. 188, Art. 34.

account the type and nature of migrant fishers' employment (which can be seasonal, casual and hazardous), and consider:

(i) introducing greater flexibility to requirements for eligibility and contributions as well as qualifying conditions;

(ii) provisions or mechanisms allowing nationals working abroad and their dependants to remain affiliated on a voluntary basis to national general social security schemes in their country of ordinary residence and to maintain their acquired rights;

(iii) provisions allowing for the payment of acquired benefits abroad;

(iv) provisions allowing foreign employers to pay contributions without imposing duplicative or conflicting obligations under multiple national systems;

(v) provisions allowing retroactive payments of contributions by employers and migrant fishers, and retroactive payments for periods in which contributions have been missed, to adapt to the insufficient or irregular contributory capacity of migrant fishers; [37]

(d) create and provide access to comprehensible information packages for migrant fishers and their employers on social protection rights and the administrative procedures for accessing the relevant social protection programmes or schemes, taking into account language and literacy barriers.

Bilateral and multilateral agreements

26. The State of origin should:

(a) establish cross-border alliances and reporting mechanisms with relevant flag States and States of recruitment, with a view to fostering cooperation, information-sharing and communication to address issues concerning migrant fishers effectively. Information-sharing should respect confidentiality of commercial and personal data;

(b) conclude bilateral or multilateral labour migration agreements [38] with relevant flag States and States of recruitment to ensure that the labour rights and human rights of migrant fishers are protected, including provisions on social protection and references to existing social security agreements, and provisions on the enforceability of fisher's work agreements;

(c) ensure that such agreements:

(i) apply to all areas where the fishing vessels flying the flag of the flag State are authorized to operate, including the high sea or the exclusive economic zones of third countries;

(ii) include mechanisms for the oversight of recruitment and placement and provide for access to complaint and grievance mechanisms;

(iii) include mechanisms for monitoring compliance with the terms and conditions of fisher's work agreements;

(iv) are consistent with internationally recognized human rights, including the fundamental principles and rights at work, and the relevant international labour standards and

[37] Social Protection Floors Recommendation, 2012 (No. 202); ILO, *Intervention Model: For extending social protection to migrant fishers*, ILO Brief, 2025.

[38] See Recommendation No. 86, Annex.

include robust mechanisms for prevention and law enforcement to combat forced labour and human trafficking;

(v) include the principle of equal treatment between national and non-national fishers, including in terms of remuneration, access to social protection and access to decent conditions of work on board fishing vessels with regard to minimum requirements for work on board; conditions of service; accommodation and food; occupational safety and health protection; and medical care;

(vi) are built upon prior tripartite social dialogue;

(vii) are implemented effectively and are subject to monitoring by the parties;

(d) conclude bilateral or multilateral social security agreements with relevant States to ensure equality of treatment irrespective of nationality, the maintenance of social security rights that have been acquired or are in the process of being acquired by all fishers regardless of residence, and the determination of applicable legislation. [39]

D. Guidelines for flag States

National legislation

27. The flag State should:

(a) ensure that adequate labour standards for all fishers, including migrant fishers, working on board fishing vessels authorized to fly its flag, are developed in consultation with the social partners and enshrined in laws, regulations or other measures; such national standards should be consistent with generally accepted minimum international standards as reflected in Convention No. 188; and, where Convention No. 188 has been ratified, it should be effectively included in national laws and regulations, and national standards should comply with its requirements, as a minimum;

(b) ensure that relevant national labour legislation effectively applies to sea-based work and fully covers all fishers, including migrant fishers, working on fishing vessels flying its flag, without any form of discrimination, for example in relation to pay or social security, without imposing duplicative or conflicting obligations under multiple national systems;

(c) respect, promote and realize freedom of association and the effective recognition of the right to collective bargaining of migrant fishers by ensuring that there are no impediments to keep migrant fishers from organizing and bargaining collectively and ensure that migrant fishers and employers have the right to join organizations, form their own organizations, take on positions of leadership in an organization, and exercise the respective rights; and that migrant fishers and employers are protected against anti-union practices or acts of interference, as the case may be;

(d) prohibit and penalize any kind of retaliation or victimization of migrant fishers and employers as a result of them exercising their rights, for example, rights related to freedom of association.

[39] Convention No. 188, Arts 36 and 37; Convention No. 118; Convention No. 157 and Recommendation No. 167; and ILO, *ILO Multilateral Framework on Labour Migration*.

Data and statistics

28. The flag State should:

(a) collate existing data on fishers, including migrant fishers, such as from crew lists;

(b) ensure that an appropriate national authority within the flag State generates and disseminates statistics on migrant fishers; and

(c) aspire to develop a more detailed registry taking into account the guidance contained in Appendix II.

Compliance and enforcement

29. The flag State should:

(a) effectively exercise its jurisdiction and control over fishing vessels flying its flag by establishing a system for ensuring compliance with laws, regulations and measures to protect all fishers, including migrant fishers, working on board fishing vessels flying its flag, including reporting, monitoring, complaint procedures, appropriate penalties and corrective measures, [40] as well as regular and unannounced inspections; using a strategic compliance approach with proactive, targeted and risk-based inspections;

(b) designate the competent authority or authorities and adopt a multidisciplinary approach by establishing a coordination mechanism among labour, maritime, fisheries, immigration, police and all other relevant authorities for the fishing sector at the national and local levels, with a view to ensuring the effective implementation and enforcement of laws, regulations and measures to protect all fishers, including migrant fishers, working on board fishing vessels flying its flag; [41]

(c) develop and implement, in consultation with employer and worker representatives, clear standard operating procedures or referral mechanisms that clarify the role of each authority in identifying, signalling or addressing any labour violations concerning migrant fishers; and build the capacity of all actors involved in inspections of fishing vessels to identify serious violations of the labour rights or human rights of migrant fishers, including indicators of forced labour (see Tool 7 in Appendix I), and to alert and report the suspected violations to the competent authority;

(d) ensure that labour authorities (general labour inspectors or specialized safety and health labour inspectors) that have been assigned responsibilities for the inspection of labour conditions on board fishing vessels are empowered to enter ports and board fishing vessels, and are adequately trained, including through the International Training Centre of the ILO, in particular regarding sector-specific labour issues and related legislation and the detection of labour violations including forced labour on board fishing vessels (see Tool 7 in Appendix I);

(e) ensure that maritime authorities (marine surveyors or inspectors) or fisheries authorities (fisheries inspectors) that have been assigned responsibilities for the inspection of labour conditions on board fishing vessels are adequately trained, including through the International Training Centre of the ILO, in particular regarding relevant labour issues and related legislation, the detection of labour violations including forced labour on board fishing

[40] Convention No. 188, Art. 40.

[41] Convention No. 188, Art. 7(b).

vessels (see Tool 7 in Appendix I), and how to interview migrant fishers and other key actors without putting them at risk of reprisal;

(f) ensure the provision of independent interpretation to assist flag State inspectors of labour conditions on board fishing vessels, in particular when interviewing migrant fishers, ensuring confidentiality of statements obtained during inspections;

(g) ensure that inspectors of labour conditions on board fishing vessels create safe spaces for migrant fishers to report abuses during inspections, ensuring confidentiality of statements obtained during inspections; and collaborate, where appropriate, with employers' and workers' representatives, with a view to building trust with migrant fishers and increasing the effectiveness of inspections. Government authorities, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations;

(h) ensure that any fishing vessel owner, who, following a transparent investigation, is found to have committed a serious violation of labour rights or human rights, is denied the right to register a fishing vessel in the respective national register until the competent authority is satisfied that such a violation will not recur, and ensure that adequate and transparent mechanisms and procedures are in place for any appeals process;

(i) encourage fishing vessel owners to use recruitment and placement services and private employment agencies (in line with Convention No. 188 which refers to Convention No. 181, Article 1, paragraph 1(b)) that operate in a State that has ratified and effectively implemented Convention No. 188, Convention No. 181 or the MLC, 2006, and are duly licensed, certified or otherwise authorized to operate in that State;

(j) facilitate social dialogue amongst representatives of migrant fishers and fishing vessel owners through respect for, and promotion and realization of, the right to freedom of association and the effective recognition of the right to collective bargaining of legally-binding and enforceable agreements pertaining to grievance redress mechanisms and access to remedy.

Complaint and grievance mechanisms

30. The flag State should:

(a) require that fishing vessels flying its flag have accessible, free-of charge and trusted on-board complaint procedures (including online) to ensure the fair, effective and expeditious handling of complaints by migrant fishers of rights violations, safeguarding their confidentiality;

(b) establish effective, free, expeditious, accessible and trusted grievance and other dispute resolution mechanisms;

(c) prohibit and penalize any kind of retaliation or victimization of a migrant fisher for filing a complaint or grievance;

(d) ensure that all migrant fishers are provided with a copy of any on-board complaint procedures applicable on the ship, as well as contact information for the competent authority in the flag State and in the State of origin, and, where possible, the name of a person on board the fishing vessel who can, on a confidential basis, provide migrant fishers with impartial advice on their complaint and otherwise assist them in following the complaint procedures available to them on board, and are provided with information about the grievance and other dispute resolution mechanisms;

(e) in the event of a complaint, grievance or evidence of a violation of the labour rights or human rights of migrant fishers on a fishing vessel flying its flag, take steps to investigate and ensure that action is taken to remedy any deficiencies found and to preserve the safety and health of migrant fishers, including, if need be, by facilitating their safe disembarkation and access to medical treatment.

(f) guarantee due process rights of the parties involved, including the right of all parties to be heard, throughout the process.

Human rights due diligence

31. The flag State should:

(a) protect migrant fishers against human rights abuses within their jurisdiction, both in the recruitment process and during engagement, and ensure respect for the fundamental principles and rights at work, including through the prevention of child labour, forced labour and discrimination;

(b) exercise human rights due diligence and encourage all actors of the supply chain benefiting from the labour of migrant fishers to conduct human rights due diligence to ensure that human rights are respected throughout the recruitment process and during engagement.

OSH and violence and harassment

32. The flag State should:

(a) adopt or adapt and effectively apply OSH policies on all fishing vessels flying its flag, regardless of the size of the vessel, the propulsion power or area of operation, concerning issues such as the prevention of occupational accidents and incidents, occupational diseases and work-related risks on board fishing vessels, including risk evaluation (with the participation of migrant fishers or their representatives, as appropriate), risk management and the training and instruction of migrant fishers, as well as the reporting and investigation of accidents, thereby promoting basic principles such as assessing occupational risks or hazards, combating occupational risks or hazards at source, and developing a preventive safety and health culture; [42]

(b) require and support fishing vessel owners to establish on-board procedures for the prevention of occupational accidents and incidents, injuries and diseases, taking into account the specific hazards and risks on the fishing vessel concerned and the vulnerability of migrant fishers; [43]

(c) require and support fishing vessel owners to adopt and implement relevant policies and measures to prevent and address shipboard violence and harassment, including gender-based violence and harassment, taking into account the vulnerability of migrant fishers;

(d) establish, in consultation with employer and worker representatives, safe, fair and effective reporting mechanisms and procedures for cases of shipboard violence and harassment, including gender-based violence and harassment, safeguarding the confidentiality of complaints made by migrant fishers;

[42] Convention No. 188, Art. 31; Convention No. 187, Art. 3.

[43] Convention No. 188. Art. 32(2)(a).

(e) guarantee due process rights of the parties involved, including the right of all parties to be heard, throughout the process.

Migration-related procedures

33. The flag State should:

(a) ensure that procedures to be followed by fishing vessel owners seeking to obtain clearance to hire migrant fishers on board fishing vessels flying its flag, be they operating in waters under national sovereignty or jurisdiction or on the high seas, are not overly bureaucratic and slow, in order to prevent irregular recruitment and employment; [44]

(b) review the visa system in place to ensure that:

(i) migrant fishers working on fishing vessels flying its flag are considered as migrant workers under their jurisdiction, regardless of their nationality and area of operation;

(ii) forced labour and other labour rights abuses are not fostered, for example, by restricting the freedom of migrant fishers to change vessel or their employer, by requiring the employer's permission to change employment, or by confining their freedom of movement to the fishing vessel;

(iii) access is provided to fishing ports in the flag State;

(iv) a change of employer or termination by the migrant fisher of the fisher's work agreement before its expiry does not immediately trigger an irregular migration situation entailing deportation or criminalization, but rather provides for a grace period to regularize the situation, for example by finding a new employer.

Transfer to another vessel

34. The flag State should take measures, informed by the 2023 FAO *Voluntary Guidelines for Transshipment*, [45] to ensure the regulation and monitoring of any transfers of migrant fishers that may occur in the context of the transshipment of fish, and ensure, in particular, that:

(a) such transfer occurs where possible in port and is only authorized under specific circumstances stipulated in national laws or regulations, taking due account of the fundamental rights at work of migrant fishers;

(b) the fishing vessel owner immediately reports any change of crew at sea or transfer at sea of a migrant fisher from one fishing vessel to another and ensures that the crew list is updated accordingly;

(c) the training received by the migrant fisher (see "Training and awareness-raising" below) corresponds to the types of fishing gear and fishing operations to be used on the new vessel;

(d) transfer is subject to the free, written and informed consent of the migrant fisher.

Fisher's work agreements

35. The flag State should:

(a) ensure that individual written fisher's work agreements are signed by the migrant fisher and the fishing vessel owner or an authorized representative of the fishing vessel owner, or

[44] TMIMF/2017/7, para. 9.

[45] FAO, *Voluntary Guidelines for Transshipment*, 2023, para. 8.

where the migrant fisher is not employed or engaged by the fishing vessel owner, the fishing vessel owner should have evidence of contractual or similar arrangements; [46]

(b) ensure that the minimum particulars to be included in any fisher's work agreement are determined by law and are in line with Tool 1 taking into account Tool 2 (Appendix I);

(c) ensure that the fisher's work agreement (or an authoritative copy) is in the language of the migrant fisher or is accurately translated in a language that the migrant fisher and the employer understand, and that the necessary information is provided in a clear and comprehensive way in order to allow the migrant fisher to express his or her free and informed consent;

(d) ensure that all migrant fishers are provided with a copy of their fisher's work agreement immediately after signature by all parties;

(e) ensure proper arrangements are made, including by providing sufficient time (minimum 72 hours, unless the advice has been obtained earlier), for migrant fishers to review and seek advice on their fisher's work agreements before they are concluded, taking into account language and literacy barriers, so that they are able to comprehend the contents;

(f) prohibit any agreement to forgo the right to repatriation or other rights enshrined in Convention No. 188, and consider any clauses waiving such rights to be null and void;

(g) take measures to ensure that the fisher's work agreement is not substituted or its original terms altered to the detriment of the migrant fisher at any stage, especially upon embarking; measures could include establishing a system of joint verification of fishers' work agreements by the relevant authorities of the State of recruitment and the flag State, or the use of electronic databases whereby fisher's work agreements are logged electronically in the State of recruitment and referred to by flag State authorities with safeguards for commercial and personal data protection;

(h) ensure that all fisher's work agreements, including those governed by the law of the State of recruitment or of origin, are enforceable in the flag State, including through bilateral or multilateral labour migration agreements.

Repatriation and shore leave

36. The flag State should:

(a) ensure that migrant fishers on a fishing vessel flying its flag and entering a foreign port [47] are entitled to repatriation, at the fishing vessel owner's expense, without any form of discrimination, in the following cases:

(i) expiry of the fisher's work agreement;

(ii) termination for justified reasons by the migrant fisher or for justified reasons by the fishing vessel owner;

(iii) the migrant fisher is no longer able to carry out the duties required under the fisher's work agreement or cannot be expected to carry them out in the specific circumstances, such as in the event of:

[46] Convention No. 188, Art. 20.

[47] This also applies to migrant fishers from that vessel who are transferred for the same reasons from the vessel to the foreign port.

- an illness, injury or other medical condition that requires the migrant fisher's repatriation when he or she is found medically fit to travel;
- shipwreck;
- the fishing vessel owner not being able to continue to fulfil their legal or contractual obligations as an employer of the migrant fisher by reason of insolvency, the sale of the vessel, a change of vessel registration or any other similar reason;
- a vessel being bound for a war zone or high-risk area, [48] as defined in international agreements, national laws or regulations, agreements of social partners, or the fisher's work agreement, to which the migrant fisher does not consent to go;
- termination or interruption of employment in accordance with an industrial award or collective agreement, or termination of employment for any other similar reason;

(b) ensure that the cost of repatriation is borne by the fishing vessel owner; costs to be borne should include at least the following:

(i) passage to the destination selected for repatriation;

(ii) accommodation and food from the moment the migrant fisher leaves the ship until he or she reaches the repatriation destination;

(iii) pay and allowances from the moment the migrant fisher leaves the ship until he or she reaches the repatriation destination, if provided for by national laws or regulations or collective agreements;

(iv) transportation of 30 kilograms of the migrant fisher's personal luggage to the repatriation destination; and

(v) medical treatment when necessary, until the migrant fisher is medically fit to travel to the repatriation destination;

(c) ensure that the costs of repatriation are borne by the fishing vessel owner, except where the migrant fisher has been found, in accordance with national laws, regulations or other measures, to be in serious default of their work agreement obligations;

(d) ensure that the repatriation destinations include the place at which the migrant fisher agreed to enter into the engagement, the place stipulated by collective agreement, the migrant fisher's country of residence or such other place as may be mutually agreed at the time of engagement; the migrant fisher shall have the right to choose from among the above destinations the place to which he or she is to be repatriated;

(e) determine, in consultation, the maximum period of service on board, which should not exceed 12 months, following which a migrant fisher working on board a fishing vessel flying its flag is entitled to repatriation, excluding annual leave with pay entitlements;

(f) arrange and pay for the repatriation of migrant fishers, if the fishing vessel owner fails to provide for repatriation, on the understanding that it should be entitled to recover the cost from the fishing vessel owner; [49]

[48] International Bargaining Forum (IBF), List of high-risk areas.

[49] Convention No. 188, Art. 21(4).

(g) ensure that a financial security system is in place for fishing vessels flying its flag, in order to assist migrant fishers in the event of their abandonment (including in respect of outstanding wages, repatriation costs, medical expenses and essential needs such as food, drinking water, accommodation, clothing and fuel);

(h) ensure that, in the event of abandonment, the State of origin is informed, through its respective diplomatic or consular representatives in the flag State; and report cases of abandonment for inclusion in the ILO/IMO Joint Database on Abandonment of Seafarers; [50]

(i) require fishing vessel owners to allow shore leave to migrant fishers when off duty, upon arrival in port, except when leaving the vessel is prohibited or restricted by relevant authorities of the port State or due to safety or operational reasons. In the event that a migrant fisher fails to return to the fishing vessel, without a justified reason, the fishing vessel owner may not be held liable for the costs resulting from this. These costs do not include recruitment fees and related costs, except costs of repatriation.

Liability

37. The flag State should:

(a) hold the fishing vessel owner liable in the event that the private employment agency used by the fishing vessel owner defaults on its obligations to migrant fishers; [51]

(b) ensure that migrant fishers employed by private employment agencies are not precluded from asserting a right to a maritime lien arising against the fishing vessel, giving them the right to pursue legal action against the vessel itself with a view to secure claims against the private employment agency and, subsequently, the fishing vessel owner, and thus recover what is owed to them;

(c) encourage and support fishing vessel owners to make technology available to record and report real-time working conditions on board (including work or rest hours) and call for emergency assistance or rescue; inspectors of labour conditions on board fishing vessels should have the authority to request, obtain and view these recordings for reporting on the working conditions of a vessel or as evidence in case of alleged labour or human rights abuses;

(d) require and support, as appropriate, fishing vessel owners to provide migrant fishers on board fishing vessels flying its flag, including in distant-water fleets, with social connectivity, as far as reasonably practicable, including internet access, preferably Wi-Fi, free of charge, for the purposes of enabling them to contact their representatives, family and friends, seek assistance or file complaints or grievances, subject to technical feasibility, any on-board protocol governing acceptable internet usage and any reasonable limitations on data.

Social protection

38. The flag State should:

(a) require fishing vessel owners to provide appropriate medical equipment and medical supplies for the service of the vessel, taking into account the number of fishers on board, the

[50] ILO and IMO, "ILO/IMO Joint Database on Abandonment of Seafarers".

[51] Convention No. 188, Art. 22(5).

area of operation and the length of the voyage, with at least one fisher on board who has the necessary knowledge to use them and is qualified or trained in first aid;

(b) require fishing vessel owners to provide to migrant fishers working on their vessels access to medical equipment and supplies as well as access to medical care on board; and to ensure that medical care provided while on board is free of charge to the migrant fisher; [52]

(c) require fishing vessel owners to respect the right of migrant fishers, when seriously sick or injured, to medical treatment ashore and to be taken ashore in a timely manner for treatment; and ensure that medical care provided while landed in a foreign port is free of charge to the migrant fisher. [53]

(d) require fishing vessel owners to provide migrant fishers working on their vessels with the appropriate protection in the event of work-related sickness, injury or death, through the provision of medical care and the corresponding compensation in accordance with national laws and regulations, through compulsory social insurance, workers' compensation or other schemes; [54]

(e) build, strengthen and expand sustainable social protection systems, including social protection floors for all, including for migrant fishers and their dependants, in particular for medical care, sickness, employment injury and diseases, and death or survivor benefits, taking into account the type and nature of migrant fishers' employment (which can be seasonal, casual and hazardous), and consider:

(i) introducing greater flexibility to requirements for eligibility and contributions as well as qualifying conditions;

(ii) provisions allowing for the payment of acquired benefits abroad, for instance enabling payments to the country of ordinary residence of the migrant fisher; [55]

(f) create and provide access to comprehensible information packages for migrant fishers and employers on social protection rights and the administrative procedures for accessing the relevant social protection programmes or schemes, taking into account language and literacy barriers;

(g) in the absence of adequate social security coverage of migrant fishers, give consideration to ways in which comparable benefits can, in accordance with national law and practice, be provided to migrant fishers.

Bilateral and multilateral agreements

39. The flag State should:

(a) establish cross-border alliances and reporting mechanisms with relevant States of recruitment and States of origin, with a view to fostering cooperation, information-sharing and communication to address issues concerning migrant fishers effectively. Information-sharing should respect confidentiality of commercial and personal data;

[52] Convention No. 188, Arts 29(a)–(d) and 30(f).

[53] Convention No. 188, Arts 29(e) and 30(f).

[54] Convention No. 188, Art. 38.

[55] Recommendation No. 202; ILO, *Intervention Model: For extending social protection to migrant fishers*.

(b) conclude bilateral or multilateral labour migration agreements [56] with relevant States of recruitment and States of origin, in order to ensure that the labour rights and human rights of migrant fishers are protected, including provisions on social protection and references to existing social security agreements, and provisions on the enforceability of fisher's work agreements;

(c) ensure that such agreements:

(i) apply to all areas where the fishing vessels flying its flag are authorized to operate, including the high sea or the exclusive economic zones of third countries;

(ii) include mechanisms for the oversight of recruitment and placement and provide for access to complaint and grievance mechanisms;

(iii) include mechanisms for monitoring compliance with the terms and conditions of fisher's work agreements;

(iv) are consistent with internationally recognized human rights, including the fundamental principles and rights at work, and the relevant international labour standards, and include robust mechanisms for prevention and law enforcement to combat forced labour and human trafficking;

(v) include the principle of equal treatment between national and non-national fishers, including in terms of remuneration, access to social protection and access to decent conditions of work on board fishing vessels with regard to minimum requirements for work on board; conditions of service; accommodation and food; occupational safety and health protection; and medical care;

(vi) are built upon prior tripartite social dialogue;

(vii) are implemented effectively and are subject to monitoring by the parties;

(d) conclude bilateral or multilateral social security agreements with relevant States to ensure equality of treatment irrespective of nationality, the portability of benefits acquired or in the process of being acquired and the determination of applicable legislation. [57]

Training and awareness-raising

40. The flag State should:

(a) require and support fishing vessel owners to ensure that every migrant fisher on board fishing vessels flying its flag has received basic safety training in compliance with the STCW-F Convention [58] and approved by its competent authority or the competent authority of the State of recruitment or of the State of origin;

(b) require and support fishing vessel owners to ensure that, in line with generally accepted minimum international standards, migrant fishers receive free and adequate training in the handling of the types of fishing gear they will use and in the knowledge of the fishing operations in which they will be engaged (trawling, purse-seining, longlining, gill-netting and so on), including familiarization on board with the equipment and methods of operation as well as the relevant safety measures, prior to using the equipment or participating in the

[56] See Recommendation No. 86, Annex.

[57] Convention No. 188, Art. 36; and Convention No. 118.

[58] STCW-F Convention, Ch. III, Regulation III/1, to be read in conjunction with the Code of the STCW Convention, Section A-VI/1.

operations concerned, [59] taking into account the expected duration of the fishing trip and the areas of operation of the vessel;

(c) create comprehensible information packages for migrant fishers on migrant fishers' rights and obligations, taking into account language and literacy barriers;

(d) ensure that the responsible actors provide access or referral to adequate sector- and flag State-specific post-arrival training or orientation, at no cost to the migrant fishers, in a language they understand, to migrant fishers prior to boarding the vessel, involving the representative organizations of employers and workers concerned, and in particular the representative organizations of fishing vessel owners and migrant fishers, where they exist. Governments, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations;

(e) ensure that information on migrant fishers' rights and obligations and an overview of these Guidelines, together with other authoritative information material concerning migrant fishers' rights and obligations, are accessible to all migrant fishers, and are included in the post-arrival training or orientation for migrant fishers, taking into account language and literacy barriers;

(f) ensure that these Guidelines are made available to all migrant fishers in an appropriate language.

E. Guidelines for port States

Compliance and enforcement

41. The port State should:

(a) undertake port State control of foreign-flagged fishing vessels calling at its ports in the normal course of business or for operational reasons; and establish a port State control regime composed of reporting, monitoring, complaint procedures, appropriate penalties and corrective measures, as well as inspections using a strategic compliance approach with proactive, targeted and risk-based inspections;

(b) recognize valid documents issued by flag States that ratified Convention No. 188, stating that the vessel has been inspected for compliance with the provisions of this Convention;

(c) ensure the availability of a sufficient number of qualified port State control officers, taking into account the number of port calls by foreign-flagged fishing vessels;

(d) ensure that port State control officers are adequately trained in the inspection of labour conditions on board fishing vessels, including through the International Training Centre of the ILO or port State control memoranda of understanding, in particular regarding labour issues and relevant legislation, the detection of labour violations including forced labour on board fishing vessels (see Tool 7 in Appendix I) and how to interview migrant fishers and other key actors without putting them at risk of reprisal;

(e) designate the competent authority or authorities and strengthen coordination among maritime, fisheries, labour, immigration, police and other relevant authorities for the

[59] Convention No. 188, Arts 31(b) and 32(3)(c).

purposes of increasing the effectiveness of port State control of labour conditions on board fishing vessels; [60]

(f) ensure the provision of independent interpretation to assist port State control officers, in particular when interviewing migrant fishers, ensuring confidentiality of statements obtained during inspections;

(g) ensure that inspectors of labour conditions on board fishing vessels create safe spaces for migrant fishers to report abuses during inspections, ensuring confidentiality of statements obtained during inspections, and collaborate, where appropriate, with employers' and workers' representatives, with a view to building trust with migrant fishers and increasing the effectiveness of inspections. Government authorities, social partners, migrant fishers and migrant fishers' organizations may seek assistance from other relevant organizations;

(h) in the event of forced labour or other serious violations of the labour rights or human rights of migrant fishers, take the measures necessary to preserve their safety and health, including, if need be, by detaining the vessel for rectification measures no longer than reasonably necessary, facilitating the safe disembarkation, access to medical treatment and repatriation of migrant fishers, and immediately informing the flag State and the State of origin;

(i) take, for the protection of migrant fishers in foreign ports, measures to facilitate the access of migrant fishers to consuls of their State of nationality or State of residence as well as the access to the port and to migrant fishers by those consuls, in the event of repatriation, injury or illness, forced labour or other serious violations of labour rights or human rights, or any other issues requiring their intervention;

(j) ensure that, in the event of abandonment in the port State, the flag State and the State of origin is informed, through their respective diplomatic or consular representatives in the port State; and report cases of abandonment for inclusion in the ILO/IMO Joint Database on Abandonment of Seafarers.

Complaint and grievance mechanisms

42. The port State should:

(a) establish onshore complaint procedures (including online) that are effective, free-of-charge, expeditious, accessible and trusted, safeguarding the confidentiality of complaints made by migrant fishers;

(b) ensure that migrant fishers on foreign-flagged fishing vessels calling at its ports who allege a rights violation, have the right to file a complaint or grievance, directly or through a representative, with a view to facilitating a prompt and practical means of redress;

(c) ensure all migrant fishers are provided, through visual campaigns in ports or during port State control or through other means, with information relating to the onshore complaint procedures applicable (including contact details of the competent authority in the port State and of a person or entity in the port who can, on a confidential basis, provide migrant fishers with impartial advice on their complaint and otherwise assist them in following the complaint procedures available to them);

[60] Convention No. 188, Art. 7.

(d) ensure that migrant fishers have access to justice and communication with the diplomatic or consular representative of their state of origin, irrespective of their migrant status;

(e) guarantee due process rights of the parties involved, including the right of all parties to be heard, throughout the process.

Repatriation and shore leave

43. The port State should:

(a) facilitate the repatriation of migrant fishers in a manner which excludes discrimination on any grounds and irrespective of the flag State of the fishing vessel on which they work;

(b) ensure that migrant fishers are allowed ashore by the relevant authorities, while the fishing vessel on which they arrive is in a port in its jurisdiction, provided that the relevant formalities have been fulfilled, and the relevant authorities have no ground to refuse permission to come ashore for reasons of public health, public safety and security or public order;

(c) allow shore leave in a manner which excludes discrimination on any grounds and irrespective of the flag State of the fishing vessel on which the migrant fishers work;

(d) ensure that an adequate visa or permitting system is in place to facilitate shore leave for migrant fishers.

Medical care and welfare

44. The port State should:

(a) provide or ensure the provision of welfare facilities and services to migrant fishers, such as legal aid, means of communication and access to recreational facilities, without any form of discrimination;

(b) take measures to ensure that, in the event of serious injury or illness, migrant fishers have access, free of charge, when in port, to medical care (emergency, primary and in some cases secondary healthcare), including hospitalization and mental healthcare when necessary;

(c) in the absence of protection from the fishing vessel owner and flag State or other State, provide migrant fishers with social protection for access to medical and healthcare, and for work-related sickness, injury or death, in accordance with national laws, regulations or practice;

(d) ensure that migrant fishers on board fishing vessels in its ports and at their associated anchorages are provided, free of charge, with social connectivity, including internet access, preferably Wi-Fi, for the purposes of enabling them to contact their representatives, family and friends, seek assistance or file complaints.

F. Guidelines for coastal States

45. The coastal State should:

(a) require that any fisheries agreement, joint venture or other written agreement concluded by it with another State, a regional economic integration organization, a fishing association or any other legal entity, giving foreign-flagged fishing vessels access to fisheries in its exclusive economic zone, contains requirements on the living and working conditions of fishers on board those vessels, including migrant fishers, to ensure compliance with generally accepted minimum international standards, such as those reflected in Convention No. 188 or the MLC, 2006;

(b) require, when granting licences, rights permits or other authorizations for fishing in its exclusive economic zone, that the relevant fishing vessels comply with generally accepted minimum international standards, such as those reflected in Convention No. 188, taking due account of any certificates or other valid documents stating that the vessel concerned has been inspected by the flag State and has been found to be in compliance with the provisions of Convention No. 188; and deny, suspend or revoke any fishing licences, rights, permits or other authorizations in cases of violations of the human rights or labour rights of fishers on board such vessels, including migrant fishers; serious violations should entail a ban of the relevant fishing vessel owner and skipper from operating in waters under national jurisdiction. [61]

G. Guidelines for labour recruiters

Human rights due diligence

46. The labour recruiter should, in accordance with national laws and regulations:

(a) conduct human rights due diligence to ensure that the human rights of migrant fishers are respected throughout the recruitment process, including through human rights due diligence assessments and by addressing and acting on any identified adverse human rights impacts;

(b) develop and implement policies and processes to ensure that their recruitment activities are conducted in a manner that treats migrant fishers with dignity and respect, free from harassment or any form of coercion or degrading or inhuman treatment, and without any form of discrimination, in line with relevant international human rights and labour instruments;

(c) not restrict the movement of migrant fishers who are under their protection;

(d) take steps to ensure that the conditions of work and living conditions into which migrant fishers are recruited are those that they have freely agreed to, and that migrant fishers are not deceived with respect to their working and living conditions, for example by ensuring congruence between the job description in published vacancies and job reality.

Data collection

47. The labour recruiter should maintain an up-to-date register of all migrant fishers recruited, placed or posted through it, taking into account Tool 6 (Appendix I), keeping track of the name, IMO number, maritime mobile service identity (MMSI) (if any), international radio call sign (if any) [62] and related data of the fishing vessel or vessels on which they work (including after transfers), to be available for inspection by the competent authority.

[61] Recommendation No. 199, Art. 55.

[62] The IMO number is recognized as the unique vessel identifier for fishing vessels in the fight against illegal, unreported and unregulated fishing. The MMSI is a unique, 9-digit number assigned to a digital selective calling radio, which acts as a digital fingerprint for vessels (for example, those using an automatic identification system) The International Telecommunication Union allocates, manages and regulates MMSIs. The international radio call sign is for verbal communication to avoid confusion.

Fisher's work agreements

48. The labour recruiter should:

(a) ensure that migrant fishers are properly trained and informed, in a language they understand, of their rights and duties under their fisher's work agreements, prior to or in the process of engagement;

(b) ensure that the fisher's work agreement (or an authoritative copy thereof) is in the language of the migrant fisher or is accurately translated in a language that the migrant fisher and the employer understand, and that the necessary information is provided in a clear and comprehensive way in order to allow the migrant fisher to express his or her free and informed consent;

(c) ensure that proper arrangements are made, including the provision of sufficient time (minimum 72 hours, unless the advice has been obtained earlier), for migrant fishers to review and seek advice on their fisher's work agreements before they are concluded, taking into account language and literacy barriers, so that they are able to comprehend the contents; [63]

(d) ensure that each migrant fisher receives a copy of his or her individual written fisher's work agreement immediately after signature by the migrant fisher and the fishing vessel owner or an authorized representative of the fishing vessel owner, or where the migrant fisher is not employed or engaged by the fishing vessel owner, the fishing vessel owner should have evidence of contractual or similar arrangements; [64]

(e) verify that the fisher's work agreements are in accordance with applicable laws and regulations and any collective bargaining agreement that forms part of the fisher's work agreement.

Other responsibilities

49. The labour recruiter should:

(a) not charge the migrant fisher, be it directly or indirectly (for example, by making deductions from wages or withholding benefits), in whole or in part, any fees for recruitment or placement or for providing employment, or any related costs, such as: [65]

(i) medical costs, including for medical examinations, tests or vaccinations;

(ii) insurance costs to insure the life, health and safety of the migrant fisher, including enrolment in welfare funds;

(iii) costs for skills and qualifications tests and language tests, including location-specific certification;

(iv) costs for required training and orientation, including pre-departure or post-arrival orientation;

(v) costs for personal protective equipment;

[63] Convention No. 188, Art. 17(a).

[64] Convention No. 188, Art. 18.

[65] Convention No.188, Art. 22(3)(b); *General principles and operational guidelines*, Part 2(II)(B), para. 12.

(vi) travel, lodging and subsistence costs within or across national borders in the recruitment process, including for training, interviews, consular appointments, relocation and repatriation;

(vii) administrative costs and application and service fees, including fees for representation and fees for services aimed at preparing, obtaining or legalizing fisher's work agreements, identity documents, passports, visas, background checks, security and exit clearances, banking services, and work and residence permits;

(b) not use any means, mechanisms or lists intended to prevent or deter migrant fishers from engaging for work; [66]

(c) make a contractual agreement with the fishing vessel owner, taking into account Tool 5 (Appendix I);

(d) verify that migrant fishers recruited or placed by them are adequately qualified and trained, in line with generally accepted minimum international standards [67] and hold the documents necessary for the job concerned;

(e) verify that the fishing vessel owner has the means to protect migrant fishers from being stranded in a foreign port (for example, financial security);

(f) prevent and address violence and harassment, including gender-based violence and harassment, in the recruitment and placement processes for migrant fishers, including by developing and implementing policies, providing training, implementing reporting mechanisms and fostering accountability;

(g) examine, respond to and pursue the resolution of any complaint or grievance filed by migrant fishers concerning its recruitment and placement activities;

(h) advise the competent authority in the State of recruitment of any unresolved complaint or grievance.

Liability

50. The labour recruiter should, in accordance with national laws and regulations:

(a) establish a system of protection, by way of insurance, deposit or an equivalent appropriate measure, to compensate migrant fishers for monetary loss that they may incur as a result of the failure of the labour recruiter or the relevant fishing vessel owner under the fisher's work agreement to meet their obligations to the migrant fishers; and ensure that migrant fishers are informed, prior to or in the process of engagement, of their rights under that system and of the compensation procedure;

(b) assume obligations to ensure the proper fulfilment by fishing vessel owners, wherever located, of the terms of the fisher's work agreements that the fishing vessel owners have entered into with migrant fishers (joint liability).

[66] Convention No.188, Art. 22(3)(a).

[67] See the STCW-F Convention, the STCW Convention and Convention No. 188.

Training and awareness-raising

51. The labour recruiter should:

(a) provide access or referral to adequate sector- and flag State-specific pre-departure training or orientation, at no cost to the migrant fishers, adapted to their assigned responsibilities, taking into account the expected duration of the fishing trip and areas of operation of the vessel;

(b) ensure that information on migrant fishers' rights and obligations and an overview of these Guidelines, together with other authoritative information material concerning migrant fishers' rights and obligations, are accessible to all migrant fishers, and are included in the pre-departure training or orientation for migrant fishers, taking into account language and literacy barriers;

(c) ensure that these Guidelines are made available to all migrant fishers in an appropriate language.

Additional responsibilities of private employment agencies

52. In addition, private employment agencies in line with Convention No. 188 (which refers to Convention No. 181, Article 1, paragraph 1(b)) should, in accordance with national laws and regulations:

(a) make a contractual agreement with the fishing vessel owner, taking into account Tool 4 (Appendix I), which clearly determines and allocates the respective responsibilities of the private employment agency and of the fishing vessel owner, including with respect to collective bargaining, wages, repatriation, work or rest hours, shore leave and other working conditions, training, OSH and social protection;

(b) fulfil the respective responsibilities allocated to the private employment agency as the employer (see section H).

H. Guidelines for fishing vessel owners

Human rights due diligence

53. The fishing vessel owner should:

(a) conduct human rights due diligence, in line with national laws and regulations where applicable, to ensure that the human rights of migrant fishers are respected, both in the recruitment process and during engagement, including by conducting human rights due diligence assessments and publicly disclosing and by addressing and acting on any identified adverse human rights impacts;

(b) commit to the principle that migrant fishers should not be charged, directly or indirectly, in whole or in part, any fees for recruitment or placement or for providing employment, or any related costs, and report transparently on the manner of financing and implementing this principle;

(c) actively promote and uphold the fundamental principles and rights at work of migrant fishers across the fisheries supply chain, including freedom of association and collective bargaining, and equality of opportunity and treatment;

(d) ensure that there is no retaliation or victimization of migrant fishers as a result of them exercising their rights, for example, the right to file a complaint or grievance or rights related to freedom of association;

(e) respect the right of migrant fishers or workers' organizations representing them, to negotiate legally binding and enforceable agreements pertaining to grievance redress mechanisms and access to remedy.

Fisher's work agreements

54. The fishing vessel owner should:

(a) ensure that each migrant fisher has an individual written fisher's work agreement signed by both the migrant fisher and the fishing vessel owner or the authorized representative of the fishing vessel owner, providing decent working and living conditions on board the vessel, or where the migrant fisher is not employed or engaged by the fishing vessel owner, the fishing vessel owner should have evidence of contractual or similar arrangements; [68]

(b) ensure that the fisher's work agreement (or an authoritative copy thereof) is in the language of the migrant fisher or is accurately translated in a language that the migrant fisher and the employer understand, and that the necessary information is provided in a clear and comprehensive way in order to allow the migrant fisher to express his or her free and informed consent;

(c) ensure that a copy of the fisher's work agreement is provided to the migrant fisher immediately after signature by all parties. [69]

Engagement with labour recruiters

55. The fishing vessel owner should:

(a) make a contractual agreement with the recruitment and placement service, taking into account Tool 5 (Appendix I);

(b) in the event that the migrant fishers are not directly employed or engaged by the fishing vessel owner:

(i) make a contractual agreement with the private employment agency in line with Convention No. 188 (which refers to Convention No. 181, Article 1, paragraph 1(b)), taking into account Tool 4 (Appendix I), which clearly determines and allocates the responsibilities of the private employment agency and the responsibilities of the fishing vessel owner, including with respect to collective bargaining, wages, repatriation, work or rest hours, shore leave and other working conditions, training, OSH and social protection;

(ii) fulfil the respective responsibilities allocated to the fishing vessel owner;

(c) understand that, in using migrant fishers who are employed and made available by a private employment agency, the fishing vessel owner places a liability on themself, should the

[68] Convention No. 188. Art. 20.

[69] Convention No. 188, Art. 18.

private employment agency default on its obligations to migrant fishers posted on board their vessel; [70]

(d) use recruitment and placement services or private employment agencies that operate in a State that has ratified Convention No. 188, Convention No. 181 or the MLC, 2006, and are duly licensed, certified or otherwise authorized to operate in that State; or, when using recruitment and placement services or private employment agencies operating in States that have not ratified these instruments, ensure they conform to standards consistent with Convention No. 188.

Repatriation and shore leave

56. The fishing vessel owner should:

(a) arrange and pay for the repatriation of migrant fishers, in the circumstances and to the repatriation destinations recommended below, and bear the costs of such repatriation, except where the migrant fisher has been found, in accordance with national laws, regulations or other measures, to be in serious default of their work agreement obligations;

(b) ensure that the circumstances in which the migrant fisher is entitled to repatriation include:

(i) the fisher's work agreement has expired; or

(ii) the fisher's work agreement has been terminated for justified reasons by the migrant fisher or for justified reasons by the fishing vessel owner, or

(iii) the migrant fisher is no longer able to carry out the duties required under the work agreement or cannot be expected to carry them out in the specific circumstances, such as:

- illness, injury or other medical condition which requires the migrant fisher's repatriation when he or she is found medically fit to travel;
- shipwreck;
- the fishing vessel owner not being able to continue to fulfil their legal or contractual obligations as an employer of the migrant fisher by reason of insolvency, the sale of the fishing vessel, a change of fishing vessel's registration or any other similar reason;
- a fishing vessel being bound for a war zone or high-risk area, [71] as defined in international agreements, national laws or regulations, agreements of social partners or the fisher's work agreement, to which the migrant fisher does not consent to go;
- termination or interruption of employment in accordance with an industrial award or collective agreement, or termination of employment for any other similar reason;

(c) ensure that the repatriation destinations include the place at which the migrant fisher agreed to enter into the engagement, the place stipulated by collective agreement, the migrant fisher's country of residence or such other place as may be mutually agreed at the time of

[70] Convention No. 188, Art. 22(5).

[71] International Bargaining Forum (IBF), List of high-risk areas.

engagement; the migrant fisher should have the right to choose from among the above destinations the place to which he or she is to be repatriated;

(d) provide for the essential needs of the migrant fisher in the case of repatriation, which includes at least the following:

(i) passage to the destination selected for repatriation;

(ii) accommodation and food from the moment the migrant fisher leaves the ship until he or she reaches the repatriation destination;

(iii) pay and allowances from the moment the migrant fisher leaves the ship until he or she reaches the repatriation destination, if provided for by national laws or regulations or collective agreements;

(iv) transportation of 30 kilograms of the migrant fisher's personal luggage to the repatriation destination;

(v) medical treatment when necessary, until the migrant fisher is medically fit to travel to the repatriation destination;

(e) respect the maximum period of service on board, which should not exceed 12 months, following which a migrant fisher is entitled to repatriation, as determined by the flag State;

(f) put safeguards in place to protect migrant fishers from being stranded in a foreign port, for example by ensuring the provision of financial security to assist them in the event of their abandonment (including in respect of outstanding wages, repatriation costs, medical expenses and essential needs such as food, drinking water, accommodation, clothing and fuel);

(g) allow migrant fishers to disembark during their period of service on board, when required to access their identity documents, to terminate their work agreement, to communicate with an organization that can render assistance and to seek repatriation;

(h) allow shore leave to migrant fishers when off duty, upon arrival in port, except when leaving the vessel is prohibited or restricted by relevant authorities of the port State or due to safety or operational reasons. In the event that a migrant fisher fails to return to the fishing vessel, without a justified reason, the fishing vessel owner may not be held liable for the costs resulting from this. These costs do not include recruitment fees and related costs, except costs of repatriation.

Retention of documents and other possessions

57. The fishing vessel owner should:

(a) ensure that migrant fishers retain in their possession, or have free and complete access at all times to, their own passports or other travel or identity documents, work and residency permits, ATM cards, seaman's books, fisher's work agreements, certificates of competency and other documents;

(b) ensure that the mobile phones or other electronic devices of migrant fishers are not confiscated, destroyed or unlawfully retained or accessed;

(c) ensure that valuable personal possessions of migrant fishers are not unlawfully retained.

Payment

58. The fishing vessel owner should:

(a) ensure the timely, full and transparent payment of wages and entitlements at no cost to the migrant fisher at monthly or other regular intervals, in line with the terms of the fisher's work agreement and any applicable collective agreement; and refrain from making illegal deductions (for example, for recruitment fees and related costs, obtaining or retaining employment, transit, visas, work permits, food, water, accommodation, personal protective equipment, required tests or vaccinations, required training and orientation, or repatriation);

(b) ensure that wages are paid in legal tender, preferably directly to the migrant fisher's designated bank account by electronic bank transfer;

(c) ensure that migrant fishers are given a pay slip at monthly or other regular intervals, taking into account Tool 3 (Appendix I), accounting for remuneration due and the amounts paid, including wage and catch share calculations, deductions, additional payments and the rate of exchange used where payment has been made in a currency or at a rate different from the one agreed to.

Medical care, OSH, welfare and social protection

59. The fishing vessel owner should:

(a) provide appropriate medical equipment and medical supplies for the service of the vessel, taking into account the number of fishers on board, the area of operation and the length of the voyage, with at least one fisher on board who has the necessary knowledge to use them and is qualified or trained in first aid;

(b) provide to migrant fishers, access to medical equipment and supplies as well as access to medical care, and ensure that medical care provided while on board, including through telemedical service where applicable, is free of charge to the migrant fisher; [72]

(c) respect the right of migrant fishers, when seriously sick or injured, to medical treatment ashore and to be taken ashore in a safe and timely manner for treatment in an appropriate medical facility, and ensure that medical care provided is free of charge to the migrant fisher; [73]

(d) provide migrant fishers, until their repatriation, with the appropriate protection in the event of work-related sickness, injury or death, through social insurance or the direct provision of medical care and the corresponding compensation; [74]

(e) establish on-board procedures for the prevention of occupational accidents and incidents, injuries and diseases among migrant fishers, taking into account the specific hazards and risks on the fishing vessel concerned; [75]

(f) adopt and implement relevant policies and measures to prevent and address shipboard violence and harassment against migrant fishers, including gender-based violence and harassment;

[72] Convention No. 188, Arts 29(a)–(d) and 30(f).

[73] Convention No. 188, Arts 29(e) and 30(f).

[74] Convention No. 188, Art. 38.

[75] Convention No. 188, Art. 32(2)(a).

(g) provide migrant fishers with social connectivity, as far as reasonably practicable, including internet access, preferably Wi-Fi, free of charge, for the purposes of enabling them to contact their representatives, family and friends, seek assistance or file complaints or grievances, subject to technical feasibility, any on-board protocols governing acceptable internet usage, and any reasonable limitations on data;

(h) pay the employer part of the relevant social security contributions on a regular and timely basis.

Training and awareness-raising

60. The fishing vessel owner should, in line with national laws and regulations:

(a) ensure that every migrant fisher on board has received basic safety training complying with the STCW-F Convention [76] and approved by the competent authority or the competent authority of the State of recruitment or of the State of origin;

(b) provide migrant fishers, in line with generally accepted minimum international standards, with free and adequate training in the handling of the types of fishing gear they will use and in the knowledge of the relevant type of fishing operations in which they will be engaged (trawling, purse-seining, longlining, gill-netting and so on), including by familiarizing them with the equipment and methods of operation as well as the relevant safety measures prior to using the equipment or participating in the operations concerned, [77] taking into account the expected duration of the fishing trip and the areas of operation of the vessel;

(c) ensure that free and adequate sector- and flag State-specific post-arrival training or orientation, in a language they understand, is provided to migrant fishers prior to boarding the vessel;

(d) ensure that information on migrant fishers' rights and obligations and these Guidelines, together with other authoritative information material concerning migrant fishers' rights and obligations, are accessible to all migrant fishers, and are included in the post-arrival training or orientation prior to boarding the vessel, taking into account language and literacy barriers;

(e) ensure that these Guidelines are made available to all migrant fishers in an appropriate language.

I. Guidelines for migrant fishers and their representatives

61. Migrant fishers, with the support of their representatives, where they exist, or, with the support of migration services in States where they exist, are encouraged to:

(a) seek information on their rights and their obligations as defined in their fisher's work agreement, and on the contents of these Guidelines, paying particular attention to their right to:

- join an organization of their choosing;
- collective bargaining;
- medical care;

[76] STCW-F Convention, Ch. III, Regulation III/1, to be read in conjunction with the Code of the STCW Convention, Section A-VI/1.

[77] Convention No. 188, Arts 31(b) and 32(3)(c).

- repatriation;
- a safe working environment;
- have a fisher's work agreement in a language the migrant fisher understands;
- have access to their documents and personal belongings at all times;
- not pay recruitment fees and related costs. Employers, not migrant fishers, should bear all recruitment fees and related costs;

(b) be aware that, within the sphere of their responsibilities, States of recruitment, States of origin, flag States, fishing vessel owners and labour recruiters each have a responsibility to ensure that migrant fishers receive comprehensive, accessible information about their rights in languages they understand and in formats that account for literacy levels. This should be achieved in cooperation with and with the participation of relevant trade unions, where they exist. The migrant fisher should be aware of the right to seek assistance and advice from other relevant organizations.

62. Migrant fishers should:

(a) provide honest and accurate personal information in accordance with the requirements of the migration process and their employment;

(b) perform their duties as stipulated in the fisher's work agreement with integrity and good faith, taking into account the living and working conditions on board;

(c) attend any required pre-departure or post-arrival training or orientation as recognized by relevant States;

(d) be aware, when taking shore leave, that failure to return to the vessel by an agreed time, without a justified reason, may result in termination of the work agreement, and that they may bear personal responsibility for any legal, financial or repatriation costs incurred, in accordance with national laws and regulations;

(e) make proper use of supplied personal protective equipment (PPE).

▶ Appendix I. Tools to facilitate the implementation of the Guidelines

Tool 1. Minimum particulars of the fisher's work agreement

Annex II to the Work in Fishing Convention, 2007 (No. 188), lists the minimum particulars to be included in the fisher's work agreement, except insofar as the inclusion of one or more of them is rendered unnecessary by the fact that the matter is regulated in another manner by national laws or regulations or a collective bargaining agreement where applicable. They are:

(a) the fisher's family name and other names, date of birth or age, and birthplace;

(b) the place at which and date on which the agreement was concluded;

(c) the name of the fishing vessel or vessels and the registration number of the vessel or vessels on board which the fisher undertakes to work;

(d) the name of the employer, or fishing vessel owner, or other party to the agreement with the fisher;

(e) the voyage or voyages to be undertaken, if this can be determined at the time of making the agreement;

(f) the capacity in which the fisher is to be employed or engaged;

(g) if possible, the place at which and date on which the fisher is required to report on board for service;

(h) the provisions to be supplied to the fisher, unless some alternative system is provided for by national law or regulation;

(i) the amount of wages, or the amount of the share and the method of calculating such share if remuneration is to be on a share basis, or the amount of the wage and share and the method of calculating the latter if remuneration is to be on a combined basis, and any agreed minimum wage;

(j) the termination of the agreement and the conditions thereof, namely:

  (i) if the agreement has been made for a definite period, the date fixed for its expiry;

  (ii) if the agreement has been made for a voyage, the port of destination and the time which has to expire after arrival before the fisher shall be discharged;

  (iii) if the agreement has been made for an indefinite period, the conditions which shall entitle either party to rescind it, as well as the required period of notice for rescission, provided that such period shall not be less for the employer, or fishing vessel owner or other party to the agreement with the fisher;

(k) the protection that will cover the fisher in the event of sickness, injury or death in connection with service;

(l) the amount of paid annual leave or the formula used for calculating leave, where applicable;

(m) the health and social security coverage and benefits to be provided to the fisher by the employer, fishing vessel owner, or other party or parties to the fisher's work agreement, as applicable;

(n) the fisher's entitlement to repatriation;

(o) a reference to the collective bargaining agreement, where applicable;

(p) the minimum periods of rest, in accordance with national laws, regulations or other measures; and

(q) any other particulars which national law or regulation may require.

Tool 2. Model fisher's work agreement [1, 2]

Fisher's work agreement	
1.	Employer's full name and address:
2.	Fishing vessel owner's full name and address (if different from 1):
3.	Fisher's full name (given names and family names) and address:
4.	Recruitment and placement service's name and address (if applicable):
5.	Fisher's date of birth or age:
6.	Fisher's birthplace:
7.	Fisher's nationality:
8.	Fisher's gender:
9.	Fisher's social security number (or equivalent):
10.	Fisher's emergency contact (name, relation with the fisher and contact details)
11.	Fisher's capacity, function or rank:
12.	Legal type of agreement (e.g. employment or service):
13.	This agreement is subject to the law of *(insert country)*:
14.	This agreement is subject to the following collective bargaining agreement (if applicable):
15.	This agreement commences on *(insert date)*:
16.	This agreement is made for: ☐ an indefinite period ☐ a definite period *(insert period)*
17.	Mutual period of notice:
18.	Place and date of the fisher's first embarkation under this agreement:
19.	Voyage or voyages to be undertaken:
20.	Port of destination or of termination of service (if known):
21.	Area(s) of operation:
22.	Expected duration of the voyage(s):
23.	Name of the fishing vessel(s):
24.	Nationality/flag of the fishing vessel(s):
25.	Mark of the fishing vessel(s):
26.	IMO number (if any) of the fishing vessel(s):

[1] Adapted from: Association of National Organizations of Fishing Enterprises in the European Union (Europêche) and European Transport Workers' Federation (ETF), *Recruitment of Migrant Fishers*, 2024, Ch. 5.2.

[2] The model can be adapted to reflect applicable national laws, regulations and practices; there should be no regression of rights.

27.	Registration number of the fishing vessel(s):
28.	Maritime mobile service identity (MMSI) (if any):
29.	International radio call sign of the fishing vessel (if any):
30.	Type of fishing operation (trawling, purse-seining, longlining, gill-netting, etc.):
31.	**Transfer of fisher to another vessel** The fishing vessel owner may, in accordance with national laws and regulations, transfer the fisher from one vessel of the owners' company to another vessel of the same company, subject to the following conditions: the free, written and informed consent of the fisher; employment conditions are equal or better to those on the original vessel; the nature of the work on both vessels is substantially similar; the training received by the fisher matches the types of fishing gear and fishing operations used on the new vessel, in accordance with national laws and regulations; and, other than in exceptional circumstances, such as emergency situations where transfer is necessary for safety and subsequently reported to the competent authority, any transfers take place in port. No transfer from fishing vessel to merchant vessel shall be allowed.
32.	**Provisions supplied to the fisher** The fishing vessel owner will provide the fisher with decent and safe accommodation. The fishing vessel owner will provide the fisher with food and water, including potable water, at no cost to the fisher unless an alternative system is provided for by national law or regulation.
33.	**Remuneration** *(The amount of the wage, including method of calculation and any deductions; or the amount of the share of the catch and the method of calculating such share if remuneration is to be on a share basis; or the amount of the wage and the amount of the share of the catch and the method of calculating the latter if remuneration is to be on a combined basis, and any agreed minimum wage.)* ☐ Option A: Wages Will be paid by bank transfer at *(weekly/monthly/regular)* intervals on the (*date/day* of each *week/month*) ☐ Option B: Share of the catch Will be paid by bank transfer at *(weekly/monthly/regular)* intervals, including how the share of the catch is calculated ☐ Option C: Combined basis Will be paid by bank transfer at *(weekly/monthly/regular)* intervals
34.	**Paid leave** *(The amount of paid annual leave or the formula used for calculating leave, where applicable, in accordance with national laws and regulations.)*
35.	**Shore leave** The fishing vessel owner will allow shore leave to fishers when off duty, upon arrival in port, except when leaving the vessel is prohibited or restricted by relevant authorities of the port State or due to safety or operational reasons. In the event that a fisher fails to return to the fishing vessel without a justified reason, the fishing vessel owner may not be held liable for the cost resulting from this. These costs do not include recruitment fees and related costs, except costs of repatriation. Fishers should be aware when taking shore leave, that failure to return to the vessel by an agreed time without a justified reason may result in termination of the work agreement and that they may bear personal responsibility for any legal, financial or repatriation costs incurred, in accordance with national laws and regulations.
36.	**Rest hours** *(The minimum periods of rest, in accordance with national laws, regulations or other measures; and how they are recorded.)*

37.	**Transportation and repatriation** The fisher is entitled to transportation (travel expenses from his or her home to the fishing vessel) at the expense of the employer. The fisher is free to terminate his or her employment and to return home. The fisher is entitled to repatriation at the expense of the employer if they are in a port foreign to the fisher when this agreement is terminated under the following conditions: (a) when this agreement expires; (b) when this agreement is terminated by the fishing vessel owner for justified reasons or the fisher for justified reasons; (c) in circumstances where the fisher is no longer able to carry out his or her duties under this agreement or cannot be expected to carry them out in the specific circumstances, such as in the event of: (i) an illness, injury or other medical condition that requires the fisher's repatriation when he or she is found medically fit to travel; (ii) shipwreck; (iii) the fishing vessel owner not being able to continue to fulfil their legal or contractual obligations as an employer of the fishers by reason of insolvency, the sale of fishing vessel, a change of the fishing vessel's registration or any other similar reason; (iv) a fishing vessel being bound for a war zone, as defined by national laws or regulations or by this agreement, to which the fisher does not consent to go; (v) termination or interruption of employment in accordance with an industrial award or collective agreement, or termination of employment for any other similar reason. The repatriation destinations shall include the place at which the fisher agreed to enter into the engagement, the place stipulated by collective agreement, the fisher's country of residence or such other place as may be mutually agreed at the time of engagement. The fisher shall have the right to choose from among the prescribed destinations the place to which he or she is to be repatriated. The entitlement to repatriation entails transport by (*means of transport*) to *(place name or country).* The fisher retains the right to request to terminate the work agreement at the next port of call. The minimum period of service following which the fisher is entitled to repatriation at no cost to the fisher is *(number of weeks)*.
38.	**Termination** *(Conditions under which the agreement is terminated. If the agreement has been made for a definite period, include the date fixed for its expiry; should the definite period lapse in the course of a voyage, the agreement would continue to be in force until the end of that voyage. If the agreement has been made for a voyage, include the port of destination and the time which has to expire after arrival before the fisher will be discharged. If the agreement has been made for an indefinite period or for a definite period of one year or more, include the conditions that entitle either party to rescind it, as well as the required period of notice for rescission, provided that such period is not less for the employer, or fishing vessel owner or other party to the agreement with the fisher. A notice period shorter than the minimum may be given in circumstances that are recognized under national laws or regulations or applicable collective bargaining agreements as justifying the termination of the agreement at shorter notice or without notice.)*
39.	**Social security** *(The health and social security coverage and benefits to be provided to the fisher by the employer, fishing vessel owner or other party or parties to the fisher's work agreement, as applicable, in accordance with national laws and regulations.)* Applicable social security coverage (*State of origin/flag State*).
40.	**Sickness, injury or death** *(The protection that will cover the fisher in the event of sickness, injury or death in connection with service, in accordance with national laws and regulations.)*

	If the fisher becomes sick or injured while on a voyage, he or she will be paid the basic wages (if not paid a share of the catch) until he or she has been repatriated in accordance with the repatriation provisions set out in box 35 above. If the fisher requires medical care while on board, this will be provided free of charge, including immediate relief, an appropriate rest facility and first aid, as well as access to necessary medicines, medical equipment, facilities for diagnosis and treatment, and medical information and expertise as soon as possible. Where practicable and appropriate, the fisher will be given paid leave to visit a qualified medical doctor or dentist in ports of call to obtain necessary treatment. In the event of sickness or incapacity, any costs of the fisher's medical care which are not met by the port of landing will be met by the vessel owner; the fisher will be provided with medical care, including medical treatment and the supply of necessary medicines and therapeutic devices and, if necessary, board and lodging away from home until his or her recovery or until he or she can be repatriated, whichever is sooner. In the event of the death or long-term disability of a fisher due to an occupational injury, illness or hazard, the employer shall compensate the fisher or his or her dependants, as set out in the applicable national laws and regulations or collective bargaining agreement (see box 12). In the event of the fisher's death occurring on board or ashore during a voyage, the employer will cover the cost of burial or cremation, or will repatriate the body where appropriate, and will return any of the fisher's property that was left on board to his or her next of kin.
41.	The following is hereby agreed between the employer and the fisher: (a) the fisher undertakes to work in the capacity mentioned in box 9 on board the fishing vessel mentioned in boxes 21–27 subject to any transfer to another fishing vessel in compliance with box 29; (b) in case of discrepancies between the fisher's work agreement and the applicable collective bargaining agreement, if any, the most favourable provisions to the fisher will apply.
42.	**Fisher's declaration** I hereby declare that I have had an opportunity to review and seek advice on the terms of this agreement before it was concluded and that I have received a copy of it. I have found this agreement comprehensible to me, in witness thereof I have signed it.
43.	Place of signing:
44.	Date of signing:
45.	Name and signature of the employer or the authorized representative:
46.	Signature of the fisher:

Tool 3. Model statement on the payment of remuneration [3, 4]

Full name and address of the employer	Date of issue	Reference number
	Starting date of payment period	End date of payment period
	Mark (if any) of fishing vessel(s)	Name of fishing vessel(s)
	IMO number (if any) of fishing vessel(s)	Type of fishing operation (trawling, purse-seining, longlining, gill-netting and so on)
	Registration number of fishing vessel(s)	Nationality/flag of fishing vessel(s)
	Gross proceeds of the catch including personal entitlement according to share of catch formula, where applicable	Net proceeds of the catch including personal entitlement according to share of catch formula, where applicable
Full name and address of the fisher	Fisher's date of birth or age	Fisher's social security number (or equivalent) and applicable social security coverage (*State*)
	Fisher's bank account number (IBAN)	Fisher's rank or function
	Statutory minimum wage per month	Number of shares
Description (wage calculations and/or share calculations, including personal entitlement according to share of catch formula where applicable, deductions, etc.)		Amount (including currency)
Total amount (including currency) paid through bank transfer		
Payment made on *(insert date)*		
Signature of the employer or his or her authorized representative		
Signature of the fisher for receipt		

[3] Adapted from: Europêche and ETF, *Recruitment of Migrant Fishers,* Ch. 5.3.

[4] The model can be adapted to reflect applicable national laws, regulations and practices; there should be no regression of rights.

Tool 4. Model private employment agency agreement [5, 6]

The private employment agency is the labour market service by any person, company, institution, agency or other organization in the private sector engaged in employing or engaging fishers to make them available to fishing vessel owners who assign their tasks and supervise the execution of these tasks.

The characteristic of this service is that the service provider, not the fishing vessel owner, is the formal employer of the fisher in line with Convention No. 188 (which refers to Convention No. 181, Article 1, paragraph 1(b)).

This agreement is made this (*insert date*) between (*insert name of the private employment agency*), hereinafter referred to as "the provider", and (*insert name of the fishing vessel owner*) hereinafter referred to as "the principal", with effect from (*insert date*). It is hereby agreed as follows:

Article 1

The subject of the agreement

1. The principal hereby appoints the provider as a private employment agency to select and employ for the latter's account fishers, who are at least 18 years of age and who are legally domiciled in *(insert country name)*, to make them available to the principal who will assign these fishers their tasks and supervise the execution of these tasks.
2. The number of fishers to be posted by the provider, their capacities and their competencies shall be determined by the principal depending on the principal's requirements.

Article 2

Services to be provided by the provider

1. The provider shall provide the following services:
   (a) the employment and provision of competent, qualified and trained fishers, legally domiciled in (*insert country name*), on terms and conditions relating to remuneration, hours of work or hours of rest, work in night shifts, breaks, duration of annual leave, work on public holidays, and measures to combat discrimination on any grounds, which are at least those of the (*insert name of the applicable collective bargaining agreement, if any*), which are attached to this agreement; the fishers concerned must have an adequate command of the English language, or another agreed language, relative to their capacity on board the principal's fishing vessel;
   (b) the handling of matters relating to the discipline, labour relations, occupational safety and health (OSH), and amenities of the posted fishers;
   (c) the administration and coordination of arrangements in connection with pre-employment procedures for posting fishers, including medical examinations, vaccinations, documentation and other official permits necessary for posted fishers to be entitled to join the principal's fishing vessel; documents to be presented to the principal include, but are not limited to:

[5] Adapted from: Europêche and ETF. *Recruitment of Migrant Fishers*, Ch. 6.

[6] The model can be adapted to reflect applicable national laws, regulations and practices; there should be no regression of rights.

(i) an original and a copy of the fisher's work agreement signed by both the fisher and the provider and a copy of any collective bargaining agreement applicable to the fisher's work agreement other than the agreements referred to in paragraph 1(a) of this article;

(ii) a valid certificate of competency in compliance with the IMO International Convention on Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel (STCW-F Convention), 1995, if explicitly required by the principal;

(iii) a valid certificate of basic safety training in compliance with the STCW-F Convention;

(iv) a valid certificate of medical fitness to perform duties aboard seagoing fishing vessels in compliance with the Work in Fishing Convention, 2007 (No. 188) or the STCW-F Convention;

(v) any other applicable legislation and public authority certificate;

(vi) a valid passport;

(vii) a valid seaman's book or similar official document;

(viii) evidence that the fisher is domiciled in *(insert country name)*;

(ix) copies of documents (i)–(viii) inclusive; each document mentioned in this subparagraph is to be accompanied by a translation into the English language if not issued in that language;

(d) the administration and all other matters relating to the booking of posted fishers onto courses and training programmes as required by the principal or by any statutory or regulatory authority at no cost to the fisher;

(e) the maintenance of efficient and accurate personnel records and an efficient and accurate record of payments made to or made about any posted fisher, including:

(i) social security and/or pension contributions; and

(ii) the administration of any taxes, and records;

(f) the notification and enforcement of appropriate standing orders as issued in the English language by the principal from time to time and supplied to the provider in writing;

(g) the arrangement of travel for posted fishers to and from the principal's fishing vessel and the administration thereof if so required by the principal; the provider will brief the fishers concerned about their baggage allowance when flying and will also inform them that any excess fare or penalty will be for their own account; and

(h) the reimbursement of any advance payments on remuneration made by the principal for and on behalf of the provider, and the reimbursement of costs made on account by the posted fishers concerned for beverages (including bottled mineral water, unless this is the only drinking water available); tobacco and tobacco products; private use of social connectivity (including radio, phone, fax and/or internet) exceeding any imposed reasonable limitations; and any other personal expenditure. Potable water and any agreed Wi-Fi are provided free of charge.

2. The provider shall propose its candidate(s) for work on board the principal's fishing vessel at least seven days before the estimated embarkation date. The principal has the right to refuse candidates who are, to the principal's judgement, not suited for the tasks to be assigned to them.

Article 3

Duties of the provider prescribed by the law of *(insert name of the country of the principal)*

In principle, the terms set out below should apply.

1. The provider shall:

   (a) be registered in *(indicate the competent authority, e.g. the trade register of a chamber of commerce),* in accordance with *(insert applicable laws and regulations);*

   (b) pay the fishers posted aboard the principal's fishing vessel their full net remuneration on time through bank transfer;

   (c) not charge fishers, be it directly or indirectly, in whole or in part, any fees or any other related costs for making them available to the principal;

   (d) fully compensate fishers who will be posted for any costs they incur for obtaining a muster or seaman's book and for obtaining a medical certificate prescribed by *(insert applicable law)* which attests to their fitness to perform their duties on board fishing vessels;

   (e) keep on behalf of the competent authorities a register of the fishers that he or she has made available; this register shall contain the personal data of each fisher; and

   (f) comply with the relevant regulations on data protection.

2. The provider shall ensure that:

   (a) before or at the time of the commencement of their employment, fishers who will be posted will be informed about their rights and duties in accordance with their fisher's work agreement with the provider;

   (b) all necessary measures have been taken enabling fishers who will be posted to study their fisher's work agreement with the provider;

   (c) fishers who will be posted receive a signed copy of their fisher's work agreement with the provider; and

   (d) posted fishers receive a written statement of every payment of their remuneration (see model provided as Tool 3) within not more than *(insert number)* of days after the due date for such payment, specifying the composition of the pay and other remuneration, the amounts which have been stopped from it and the description thereof, and any currency rates that have been used; this statement is also to specify the name and address of the provider, the name, address and date of birth of the posted fisher, the period for which the remuneration is due, the applicable statutory minimum wage, if any, for the period concerned, and the working time agreed.

3. The provider shall further ensure that:

   (a) each posted fisher disposes of the qualifications and documents detailed in article 2(1)(c) of this agreement required by (*insert applicable law or regulation*) for the capacity in which he or she shall serve;

   (b) the fisher's work agreement between the fisher and the provider:

      (i) complies with applicable laws, regulations and applicable collective bargaining agreements and

      (ii) at least complies with Annex II to Convention No. 188.

Article 4

Business integrity

The provider shall not, directly or indirectly, offer, pay or accept bribes of any kind concerning the execution of this agreement. Moreover, all of its business transactions shall be reflected accurately and fairly in its accounts and are subject to audit and disclosure.

Article 5

Subcontracting

The provider shall be entitled to subcontract any or all administrative work in connection with the employment of fishers to any company or person, provided that it has the prior written consent of the principal. If the provider does subcontract any or all of its administrative services to another party, the provider will remain liable to the principal for the fulfilment of the terms of this agreement and will be liable for the negligence, errors, acts or omission of its subcontractor(s).

Article 6

Remuneration and reimbursement

1. The provider shall receive remuneration and reimbursement from the principal for its services provided under this agreement, as follows:

   (a) all costs related to the posted fishers' remuneration payments under article 3(1)(b);

   (b) any costs incurred by the provider for the services provided under article 2(1)(b), (c) and (d), if courses and/or training programmes are requested by the principal, and under article 2(1)(g) of this agreement, including subsistence costs incurred for travelling fishers; and

   (c) (*insert any applicable agency fee*).

2. Any remunerations and reimbursements will be claimed by the provider from the principal using an invoice that must be accompanied by the relative statements on payment of remuneration, detailed in article 3(2)(d) of this agreement, vouchers and other documentary evidence of the payments that have been made under this agreement.

3. The provider shall not charge fishers directly or indirectly, in whole or in part, any fees or related costs for the employment service relative to their posting on board the principal's fishing vessel, unless it concerns disbursements as per article 2(1)(h) of this agreement, or fees or costs related to the fishers' education, training, medical examination and/or transportation that are not normally borne by the provider and/or the principal.

Article 7

Payment of remuneration and reimbursement

1. The principal will pay the provider the remuneration and reimbursement of prior justified and documented expenses as referred to in article 6 of this agreement as follows:

   (a) for the remuneration as referred to in article 6(1)(a) of this agreement, payment shall be made at least seven banking days before the day on which relative payments have to be

made to the posted fisher concerned or to statutory or regulatory authorities in accordance with the obligations under this agreement;

(b) for any other remuneration and/or reimbursement due under this agreement, payment shall be made within two weeks after receipt of the relative invoice accompanied by the documentary evidence prescribed herein.

2. The principal is hereby authorized to deduct any reimbursements as per article 2(1)(h) of this agreement from payments relative to the posted fishers concerned provided that documentary evidence is presented to the provider.

3. Without prejudice to the previous paragraph, all payments shall be made by bank transfer without any deductions, taxes and charges; all costs of the bank transfers shall be borne by the principal.

Article 8

Financial records

The provider will maintain separate financial records in respect of the fishers posted on board the principal's vessel as per this agreement, which will be made available to the principal as and when they wish to peruse them. These financial records will record all payments made in respect of the provision of the services under this agreement.

Article 9

The principal's responsibilities

1. It is understood by both parties to this agreement that, under the flag State's OSH legislation, the principal is responsible for the OSH of the fishers posted aboard the fishing vessel and during their travel to and from that vessel.

2. It is understood by both parties to this agreement that, under the flag State's working time and rest time legislation, the principal and, on his or her behalf, the skipper of the fishing vessel, is responsible for the organization of the working time and rest time of fishers posted on board that vessel.

3. The principal is responsible, at his or her own expense, vis-à-vis the fishers posted on board his or her fishing vessel, for:

(a) accommodation;

(b) bedding;

(c) sanitary facilities;

(d) food and drinking water;

(e) nursing, medical care and board and lodging in case of sickness occurring on board or ashore outside (*insert fisher's country name*) while the fisher concerned is travelling to or from the said vessel, until he or she returns or could have returned to his or her residence in (*insert fisher's country name*); this responsibility does not apply to leave other than shore leave;

(f) repatriation rights;

(g) loss of personal belongings due to naval disaster; and

(h) repatriation of the deceased's remains in the event that the fisher dies aboard or ashore outside *(insert fisher's country name)* while travelling to or from the said vessel, in compliance

with and on the terms of the flag State's legislation that would apply to the principal's seagoing personnel.

4. The principal shall supply the posted fishers on board the vessel with appropriately sized and adequate personal protective equipment (PPE) and customary working clothes. The clothes remain the property of the principal; the provider will deduct any damage thereto, other than the usual wear and tear, or disappearance of the clothes from the posted fisher's remuneration upon first written notice given by the principal. Moneys thus reclaimed will be paid to the principal without delay.

Article 10

Miscellaneous provisions

1. If the principal requires a fisher to be posted on board his or her fishing vessel by the provider, the principal shall give the provider notice of the required qualifications of the fisher, the duration of the fisher's posting and the expected date and place of his or her embarkation, leaving the provider sufficient time to select and brief the fisher and prepare all required documents and travel arrangements. In case of the replacement of an entire crew, the minimum time for such preparation is one week.
2. If a posted fisher will disembark for vacation, other leave or another reason, the principal will give the provider sufficient notice in advance of the reason for and the date and place of disembarkation to enable the provider to prepare all required documents and travel arrangements. In case the principal no longer requires the labour of the posted fisher, the said notice must be given at least 24 hours in advance.
3. In coordination with the principal, the provider may send, at its own expense and with the approval of the principal, its representative to the principal's fishing vessel for a joint inspection with a representative of the principal of posted fishers.

Article 11

Insurance

1. The principal shall confirm that the fishing vessel is insured against liabilities in respect of crew claims, including those of posted fishers. Upon written demand, the principal will provide the provider with the name of the insurer and/or protection and indemnity association together with evidence of the payment of premiums or certificate of entry in respect of protection and indemnity association. The principal will procure that the provider is noted on the policy of insurance or on the certificate of entry whichever is appropriate as co-assured in respect of employer's liability claims by posted fishers.
2. Both parties to this agreement shall provide each other with any documentation or other assistance that is required in connection with any claim against the policies of insurance referred to in this article.

Article 12

Indemnity

1. The principal hereby indemnifies and holds the provider harmless against all actions, proceedings, claims, demands or liabilities that may be brought against or incurred by the provider concerning any service provided following the terms of this agreement. It is explicitly

agreed that this indemnity shall not apply in respect of any action, proceeding, claim, demand or liability brought against or incurred by the provider as a result of its negligence or breach of statutory duty, such as, but not limited to, the duties, detailed in article 3 of this agreement, the payment of social security contributions and taxes on and/or stopped from the fishers' remuneration, or arising from a breach of the terms of this agreement by the provider.

2. The provider hereby indemnifies and holds the principal harmless against all actions, proceedings, claims, fines, demands or liabilities that may be brought against or incurred by the principal should the provider default on its obligations to fishers posted on board the principal's fishing vessel or on its obligation referred to in article 3(1)(a) of this agreement.

Article 13

Commencement and termination

1. Subject to the paragraphs below, the appointment of the provider shall commence and take effect on and from (*insert date*). Such appointment shall continue from year to year thereafter unless terminated by either party giving three months' notice in writing to the other of its intention to terminate the same and specifying the termination date.

2. Either party may forthwith terminate this agreement if the other party:

   (a) commits or allows to be committed any breach of any of the terms of this agreement and fails to remedy the same within 14 days of being notified thereof by the other;

   (b) enters into liquidation or winding-up (other than for reorganization or amalgamation);

   (c) has an administration order made against it; or

   (d) has an official receiver appointed or shall make any compensation or arrangement with its creditors.

3. If the principal fails to comply with the payment terms as set out in article 7 hereof and shall fail to remedy the same within 14 days' notice thereof then the provider reserves the right to cancel this agreement forthwith thereafter.

4. If the principal wishes to cancel this agreement without due notice for whatever reason, the principal shall pay the remuneration earned by the provider as detailed in article 6 of this agreement.

Article 14

Confidentiality

Unless otherwise and insofar as prescribed by law, the principal and the provider shall keep and treat as confidential and not disclose to any third party without the written prior approval of the other any information relating to either party's business, this agreement and any associated documents.

Article 15

Consultation

In carrying out the services referred to in this agreement, the provider shall ensure that before making or implementing any decision that may result in a claim being made against the provider and/or the principal by any of the posted fishers, the provider will consult with the principal before making or implementing any such decision.

Article 16

Applicable law and forum

1. This agreement shall be governed by the laws of (*insert country name*) unless otherwise agreed or understood herein.
2. Any conflict arising from this agreement that parties cannot solve between them amicably shall be brought for decision before the competent court in (*insert name*).

Article 17

Notices

Any notice required to be served hereunder shall be sent or delivered to the addresses given in the heading of this agreement or such other address as may be notified hereunder by either party.

In witness whereof, this agreement has been executed as follows:

On behalf of *(insert name of the principal and signature)*

On behalf of *(insert name of the provider and signature)*

Tool 5. Example of a possible model recruitment and placement service agreement [7, 8]

The recruitment and placement service is the labour market service by any person, company, institution, agency, or other organization, in the public or private sector, that is engaged in recruiting fishers on behalf of, or placing fishers with, fishing vessel owners, without becoming a party to the employment relationships which may arise therefrom.

This agreement is made this *(insert date)* between *(insert name of the recruitment and placement agency)*, hereinafter referred to as the "recruitment and placement service", and *(insert name of the fishing vessel owner)*, hereinafter referred to as "principal", with effect from *(insert date*). It is hereby agreed as follows:

Article 1

The subject of the agreement

1. The principal hereby appoints the recruitment and placement service as recruitment and placement agency to select and place for the principal's account fishers, who are at least 18 years of age and who are legally domiciled in (*insert country name*), to make them available to the principal.
2. The number of fishers to be posted by the recruitment and placement service, their capacities and their competencies shall be determined by the principal, depending on the principal's requirements, and in compliance with all relevant national and applicable international rules and regulations.

Article 2

Services to be provided by the recruitment and placement service

1. The recruitment and placement service shall provide the following services:
   (a) the provision of competent, qualified and trained fishers, legally domiciled in (*insert country name*); the fishers concerned must have adequate command of the English language, or any other agreed language, relative to their capacity on board the principal's fishing vessel;
   (b) the administration and coordination of arrangements in connection with the pre-employment procedures for fishers, including medical examinations, vaccinations, documentation and other official permits necessary for posted fishers to be entitled to join the principal's fishing vessel; documents to be presented to the principal include, but are not limited to:
      (i) a valid certificate of competency in compliance with the International Convention on Standards of Training, Certification -and Watchkeeping for Fishing Vessel Personnel (STCW-F Convention), 1995, if explicitly required by the principal;
      (ii) a valid certificate of basic safety training in compliance with the STCW-F Convention; [9]

[7] Adapted from: Europêche and ETF, *Recruitment of Migrant Fishers*, Ch 7.

[8] The model can be adapted to reflect applicable national laws, regulations and practices; there should be no regression of rights.

[9] STCW-F Convention, Ch. III, Regulation III/1, to be read in conjunction with the Code of the STCW Convention, Section A-VI/1.

(iii) a valid certificate of medical fitness to perform duties aboard seagoing fishing vessels in compliance with the Work in Fishing Convention, 2007 (No. 188), and/or the STCW-F Convention;

(iv) (*insert any other applicable legislation and public authority certificate*);

(v) a valid passport;

(vi) a valid seaman's book or similar official document;

(vii) evidence that the fisher is domiciled in (*insert country name*); and

(viii) copies of documents (i)–(vii) inclusive; each document mentioned in this subparagraph is to be accompanied by a translation into the English language if not issued in that language;

(c) the maintenance of efficient and accurate personnel records;

(d) travel arrangements for the fishers to and from the principal's fishing vessel and the administration thereof if required by the principal. The recruitment and placement service will brief the fishers concerned about their baggage allowance when flying and will also inform them that any excess fare or penalty will be for their own account; and

(e) reimbursement of any advance payments on remuneration made by the principal for and on behalf of the recruitment and placement service, and reimbursement of costs made on account by the fishers concerned for beverages (including bottled mineral water, unless this is the only drinking water available); tobacco and tobacco products; private use of social connectivity (including radio, phone, fax and/or internet) exceeding any imposed reasonable limitations; and any other personal expenditure.

2. The recruitment and placement service shall propose its candidate(s) for work on board the principal's fishing vessel at least seven days before the estimated embarkation date. The principal has the right to refuse candidates who are, to the principal's judgement, not suited for the tasks to be assigned to them.

Article 3

Duties of the recruitment and placement service prescribed by the law of (*insert name of the country of the principal*)

In principle, the terms set out below should apply.

The recruitment and placement service shall:

(a) be registered in *(indicate the competent authority, e.g. trade register of a chamber of commerce)*, in accordance with *(insert applicable laws and regulations)*;

(b) not charge fishers any fees or any other money directly or indirectly, in whole or in part, for making them available to the principal;

(c) fully compensate fishers for any costs they incur for obtaining a muster or seaman's book and for obtaining a medical certificate prescribed by *(insert applicable law)* that attests to their fitness to perform their duties on board fishing vessels;

(d) informs fishers about their rights and duties under the fisher's work agreement, and offers them a fair chance to study the fisher's work agreement and ask for advice;

(e) keep on behalf of the competent authorities a register of the fishers that it has made available;

(f) comply with the relevant data protection regulations based on a further agreement with the principal.

Article 4

Business integrity

The recruitment and placement service shall not, directly or indirectly, offer, pay or accept bribes of any kind concerning the execution of this agreement. Moreover, all of its business transactions shall be reflected accurately and fairly in its accounts and are subject to audit and disclosure.

Article 5

Remuneration and reimbursement

1. The recruitment and placement service shall receive remuneration and reimbursement from the principal for its services provided under this agreement.
2. Any remunerations and reimbursements will be claimed by the recruitment and placement service from the principal using an invoice.
3. The recruitment and placement service shall not charge fishers directly or indirectly, in whole or in part, any fees or related costs for the recruitment and placement services relative to their posting on board the principal's fishing vessel.

Article 6

The principal's responsibilities

1. The principal is the employer of the fishers and is responsible for the remuneration of the fishers.
2. It is understood by both parties to this agreement that, under the flag State's occupational safety and health legislation, the principal is responsible for the occupational safety and health of the fishers placed aboard the fishing vessel and during their travel to and from that vessel.
3. It is understood by both parties to this agreement that, under the flag State's working time and rest time legislation, the principal and, on his or her behalf, the skipper of the fishing vessel, is responsible for the organization of the working time and rest time of fishers posted on board that vessel.
4. The principal is responsible, at his or her own expense, vis-à-vis the fishers on board the fishing vessel, for:

   (a) accommodation;

   (b) bedding;

   (c) sanitary facilities;

   (d) food and drinking water;

   (e) nursing, medical care and board and lodging in case of sickness occurring on board or ashore outside (*insert fisher's country name*) while the fisher concerned is travelling to or from the said vessel, until he or she returns or could have returned to his or her residence in (*insert fisher's country name*); this responsibility does not apply to leave other than shore leave;

(f) repatriation rights;

(g) loss of personal belongings due to naval disaster; and

(h) repatriation of the deceased's remains in the event that the fisher dies aboard or ashore outside (*insert fisher's country name*) while he or she is travelling to or from the said vessel, in compliance with and on the terms of the flag State's legislation that would apply to the principal's seagoing personnel.

5. The principal shall supply the fishers on board with appropriately sized and adequate personal protective equipment (PPE) and customary working clothes. The clothes remain the property of the principal.

Article 7

Commencement and termination

1. Subject to the paragraphs below, the appointment of the recruitment and placement service shall commence and take effect on and from (*insert date*). Such appointment shall continue from year to year thereafter unless terminated by either party giving three months' notice in writing to the other of its intention to terminate the same and specifying the termination date.

2. Either party may forthwith terminate this agreement if the other party:

   (a) commits or allows to be committed any breach of any of the terms of this agreement and fails to remedy the same within 14 days of being notified thereof by the other;

   (b) enters into liquidation or winding-up (other than for reorganization or amalgamation);

   (c) has an administration order made against it; or

   (d) has an official receiver appointed or shall make any compensation or arrangement with its creditors.

3. If the principal fails to comply with the payment terms as set out in article 5 hereof and shall fail to remedy the same within 14 days' notice thereof then the recruitment and placement service reserves the right to cancel this agreement forthwith thereafter.

4. If the principal wishes to cancel this agreement without due notice for whatever reason, the principal shall pay the remuneration earned by the recruitment and placement service as detailed in article 6 of this agreement.

Article 8

Confidentiality

Unless otherwise and insofar as prescribed by law, the principal and the recruitment and placement service shall keep and treat as confidential and not disclose to any third party without the written prior approval of the other any information relating to either party's business, this agreement and any associated documents.

Article 9

Applicable law and forum

1. This agreement shall be governed by the laws of (*insert country name*) unless otherwise agreed or understood herein.

2. Any conflict arising from this agreement parties that cannot solve between them amicably shall be brought for decision before the competent court in (*insert name*).

Article 10

Notices

Any notice required to be served hereunder shall be sent or delivered to the addresses given in the heading of this agreement or such other address as may be notified hereunder by either party.

In witness whereof, this agreement has been executed as follows:

On behalf of *(insert name of the principal and signature)*

On behalf of *(insert name of the recruitment and placement service and signature)*

Tool 6. Register of recruited, placed or posted fishers [10]

The labour recruiter should keep a register in line with any national requirements. Complete records to be maintained, with due regard to the right to privacy and the need to protect confidentiality, should include for each recruited, placed or posted fisher, the following information:

(a) Full name (given names and family names);

(b) place and date of birth;

(c) nationality;

(d) gender;

(e) qualifications;

(f) profession or vocation;

(g) next of kin for the purposes of compensation; and

(h) record of employment or engagement, including the:

1. fishing vessel's name;
2. mark of the fishing vessel;
3. IMO number (if any) of the fishing vessel;

3 *bis* international radio call sign of the fishing vessel (if any);

3 *ter* maritime mobile service identity (MMSI) (if any);

4. type of fishing operation (trawling, purse-seining, longlining, gill-netting and so on);
5. registration number of the fishing vessel;
6. nationality/flag of the fishing vessel;
7. full name and address of the fishing vessel owner;
8. rank or function on board;
9. validity of the medical certificate and any medical data relevant to the employment or engagement on board; and
10. the period(s) posted on board the fishing vessel.

[10] Adapted from: Europêche and ETF, *Recruitment of Migrant Fishers*, Ch. 6.

Tool 7. International legal definition of forced labour and ILO indicators of forced labour

Forced or compulsory labour is: "all work or service which is exacted from any person under the menace of any penalty and for which the said person has not offered himself voluntarily". [11]

The ILO indicators of forced labour are: [12]

- Abuse of vulnerability
- Deception
- Restriction of movement
- Isolation
- Physical and sexual violence
- Intimidation and threats
- Retention of identity documents
- Withholding of wages
- Debt bondage
- Abusive working and living conditions
- Excessive overtime

The presence of a single indicator in a given situation may in some cases imply the existence of forced labour. However, in other cases you may need to look for several indicators which, taken together, point to a forced labour case. Overall, the set of 11 indicators covers the main possible elements of a forced labour situation, and hence provides the basis to assess whether or not an individual worker is a victim of this crime.

[11] Forced Labour Convention, 1930 (No. 29), Art. 2(1).

[12] ILO, *ILO Indicators of Forced Labour*, 2012.

Tool 8. Non-exhaustive reference list of international labour standards and other international instruments most relevant to fair labour market services of migrant fishers

International labour standards

Fundamental Conventions (and related Recommendations)

- Forced Labour Convention (No. 29), its Protocol of 2014 and the Forced Labour (Indirect Compulsion) Recommendation 1930 (No. 35), and the Forced Labour (Supplementary Measures) Recommendation, 2014 (No. 203)
- Freedom of Association and Protection of the Right to Organise Convention, 1948 (No. 87)
- Right to Organise and Collective Bargaining Convention, 1949 (No. 98)
- Equal Remuneration Convention (No. 100) and Recommendation, 1951 (No. 90), 1951
- Abolition of Forced Labour Convention, 1957 (No. 105)
- Discrimination (Employment and Occupation) Convention (No. 111) and Recommendation (No. 111), 1958
- Minimum Age Convention (No. 138) and Recommendation (No. 146), 1973
- Occupational Safety and Health Convention (No. 155) and Recommendation (No. 164), 1981
- Worst Forms of Child Labour Convention (No. 182) and Recommendation (No. 190), 1999
- Promotional Framework for Occupational Safety and Health Convention (No. 187) and Recommendation (No. 197), 2006

Governance Conventions (and related Recommendations)

- Labour Inspection Convention (No. 81) and Recommendation (No. 81), 1947, and the Labour Inspection (Mining and Transport) Recommendation, 1947 (No. 82)
- Employment Policy Convention (No. 122) and Recommendation (No. 122), 1964, and the Employment Policy (Supplementary Provisions) Recommendation, 1984 (No. 169)
- Labour Inspection (Agriculture) Convention (No. 129) and Recommendation (No. 133), 1969
- Tripartite Consultation (International Labour Standards) Convention (No. 144) and Recommendation (No. 152), 1976

Technical Conventions (and related Recommendations)

- Work in Fishing Convention (No. 188) and Recommendation (No. 199), 2007
- Migration for Employment Convention (Revised) (No. 97) and Recommendation (No. 86), 1949
- Migrant Workers (Supplementary Provisions) Convention (No. 143) and Recommendation (No. 151), 1975
- Private Employment Agencies Convention (No. 181) and Recommendation (No. 188), 1997
- Employment Service Convention, 1948 (No. 88)

- Seafarers' Identity Documents Convention (Revised), 2003, as amended (No. 185)
- Maritime Labour Convention, 2006, as amended (MLC, 2006)
- Seafarers' Pensions Convention, 1946 (No. 71)*
- Equality of Treatment (Accident Compensation) Convention, 1925 (No. 19)**
- Equality of Treatment (Social Security) Convention, 1962 (No. 118)
- Employment Injury Benefits Convention [Schedule I amended in 1980] (No.121) and Recommendation (No. 121), 1964
- Medical Care and Sickness Benefits Convention (No. 130) and Recommendation (No. 134), 1969
- Maintenance of Social Security Rights Convention, 1982 (No. 157), and the Maintenance of Social Security Rights Recommendation, 1983 (No. 167)
- Maternity Protection Convention (No. 183) and Recommendation (No. 191), 2000
- Workers with Family Responsibilities Convention (No. 156) and Recommendation (No. 165), 1981
- Protection of Wages Convention (No. 95) and Recommendation (No. 85), 1949
- Protection of Workers' Claims (Employer's Insolvency) Convention (No. 173) and Recommendation (No. 180), 1992
- Minimum Wage Fixing Convention (No. 131) and Recommendation (No. 135), 1970
- Workers' Representatives Convention (No. 135) and Recommendation (No. 143), 1971
- Collective Bargaining Convention (No. 154) and Recommendation (No. 163), 1981
- Paid Educational Leave Convention (No. 140) and Recommendation (No. 148), 1974**
- Human Resources Development Convention, 1975 (No. 142), and the Human Resources Development Recommendation, 2004 (No. 195)
- Vocational Rehabilitation and Employment (Disabled Persons) Convention (No. 159) and Recommendation (No. 168), 1983
- Working Environment (Air Pollution, Noise and Vibration) Convention (No. 148) and Recommendation (No. 156), 1977
- Chemicals Convention (No. 170) and Recommendation (No. 177), 1990
- Occupational Health Services Convention (No. 161) and Recommendation (No. 171), 1985
- Biological Hazards in the Working Environment Convention (No. 192) and Recommendation, (No. 209), 2025
- Violence and Harassment Convention (No. 190) and Recommendation (No. 206), 2019
- Termination of Employment Convention (No. 158)*** and Recommendation (No. 166), 1982***
- Labour Statistics Convention (No.160) and Recommendation (No. 170), 1985

Technical Recommendations

- Voluntary Conciliation and Arbitration Recommendation, 1951 (No. 92)****

- Co-operation at the Level of the Undertaking Recommendation, 1952 (No. 94)****
- Communications within the Undertaking Recommendation, 1967 (No. 129)****
- Examination of Grievances Recommendation, 1967 (No. 130)****
- Employment Promotion and Protection against Unemployment Recommendation, 1988 (No. 176)
- Job Creation in Small and Medium-Sized Enterprises Recommendation, 1998 (No. 189)
- Promotion of Cooperatives Recommendation, 2002 (No. 193)
- List of Occupational Diseases Recommendation, 2002 (No. 194)
- Employment Relationship Recommendation, 2006 (No. 198)
- HIV and AIDS Recommendation, 2010 (No. 200)
- Social Protection Floors Recommendation, 2012 (No. 202)
- Forced Labour (Supplementary Measures) Recommendation, 2014 (No. 203)
- Transition from the Informal to the Formal Economy Recommendation, 2015 (No. 204)
- Employment and Decent Work for Peace and Resilience Recommendation, 2017 (No. 205)
- Quality Apprenticeships Recommendation, 2023 (No. 208)

At the adoption of these Guidelines:
* Status: Instrument to be revised.
** Status: Instrument with interim status.
*** Status: No conclusions.
**** Status: Request for information.
Attention should be paid to the actual status of these instruments at the time of reference.

Other international instruments

- IMO Cape Town Agreement of 2012 on the Implementation of the Provisions of the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
- IMO International Convention on Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel (STCW-F Convention), 1995 (as amended);
- FAO Agreement on Port State Measures to Prevent, Deter and Eliminate Illegal, Unreported and Unregulated Fishing, revised edition, 2016.

▶ Appendix II. Guidance on data and statistics relating to migrant fishers

Introduction

1. Migrant fishers are a critical but vulnerable workforce in the global fishing industry. Comprehensive data collection is essential for regulating their labour conditions, implementing effective policy interventions and continued monitoring of these. The Work in Fishing Convention (No. 188) and Recommendation (No. 199), 2007, establish standards for working conditions applicable to all fishers, including migrants, but do not include specific guidance on the collection of data to support monitoring for informed decision-making and planning. Also, although Convention No. 188 requires that "[e]ach Member shall adopt laws, regulations or other measures concerning … the reporting and investigation of accidents on board fishing vessels flying its flag", there is no further requirement that this information be subsequently reported to the ILO or any other body.

2. The Coordinating Working Party on Fishery Statistics, established under the auspices of the Food and Agriculture Organization of the United Nations (FAO), promotes the development of common statistical definitions, classifications and methodologies to improve fishery statistics globally. Existing guidance issued by the Coordinating Working Party recommends the collection and dissemination of sex-disaggregated data on employment in fisheries by type of activity (number of fishers or full-time equivalents). [1] However, no further guidance is provided on data needed to shed light on the working conditions of fishers, or on the particular situation of migrant fishers.

3. In 2018, the International Conference of Labour Statisticians (ICLS) – the international standard-setting mechanism in labour statistics hosted by the ILO – endorsed Guidelines concerning statistics of international labour migration, which provide relevant concepts, definitions and recommendations to establish national data collection programmes for statistics on the employment and working conditions of different groups of international migrants and to support comparisons with non-migrants. [2] These ICLS Guidelines are currently being updated by the ILO to take account of recent developments in closely related international statistical standards, including with regard to international labour mobility. [3] The revised ICLS Guidelines are expected to be published by the ILO at the end of 2025.

4. The present guidance builds on the ICLS Guidelines and sets out general recommendations to promote improvements in the collection and reporting of data on migrant fishers, taking into account the particular dynamics of the fishing sector. It highlights the value and uses of these data for monitoring and planning; identifies priority topics relevant to fishers, including migrant fishers where data are needed; outlines data sources that should be established or strengthened; and emphasizes the importance of data protection and ethical data-handling practices to ensure privacy and confidentiality. Furthermore, this guidance calls for cooperation in fisheries data collection among the different stakeholders within countries and across national borders, to help

[1] See: FAO, "Coordinating Working Party on Fishery Statistics (CWP): Fishery Production".

[2] ILO, *Guidelines concerning statistics of international labour migration*, ICLS/20/2017/Guidelines, 2019.

[3] See ILO, *Recent global developments and proposed updates to the 20th ICLS Guidelines concerning statistics of international labour migration*, ICLS/21/2023/Room document 17, 2023, Annex I; ILO, *First supplementary report: Report of the 21st International Conference of Labour Statisticians*, GB350/INS/17/1, 2024.

improve labour protections, industry standards and policy development. By implementing standardized methodologies, stakeholders can enhance transparency and accountability within the sector.

Value and uses of data on migrant fishers

5. Accurate and comprehensive data on migrant fishers are essential for informed decision-making and regulatory enforcement. Policymakers can use these data to develop and refine labour laws, fisheries management strategies and migration policies that reflect the realities of the fishing workforce.

6. Regulatory agencies can ensure compliance with international conventions and accords such as Convention No. 188; the United Nations Sustainable Development Goals, particularly Goal 8 on decent work and economic growth and Goal 10 on reduced inequalities; and the Global Compact for Safe, Orderly and Regular Migration, particularly Objective 6 on facilitating fair and ethical recruitment and safeguarding conditions that ensure decent work for migrants.

7. Robust data can help strengthen mechanisms for labour rights protection, such as those providing protection against forced labour, the retention of wages, unsafe and unhealthy working environments, and abusive recruitment practices. In particular, occupational safety and health (OSH) data can inform targeted interventions to prevent accidents, reduce injury and fatality rates, and ensure timely access to medical care and protective equipment on board.

8. By identifying high-risk areas and trends, authorities can take proactive measures to protect migrant fishers. In the fishing industry, transparent data can support fair labour certification programmes, such as those offered by the Marine Stewardship Council and Fair Trade Fisheries, ensuring ethical and safe labour practices in seafood supply chains.

Priority data on migrant fishers

9. For these purposes, data collection efforts should be focused on the socio-demographic characteristics; migration characteristics; employment and working conditions; [4] and OSH of migrant fishers, regardless of their country of citizenship, residence status or type of contract, in line with the latest international statistical standards for these topics. The characteristics of the employing economic unit should also be taken into account. Furthermore, special attention should be given to documenting situations of exploitation concerning migrant fishers, including cases of child labour, forced labour and trafficking in persons. [5] The priority data items or topics that should be collected in each of these categories are presented in the table below.

▶ Key categories and priority topics for data collection on migrant fishers

Category	Data items or topics
Socio-demographic	Age; sex; education level
Migration	Country of birth; country or countries of citizenship; country of usual residence; year or period of arrival; type of permit or visa (if any), duration of stay

[4] See for example: ILO, *Employment practices and working conditions in Thailand's fishing sector*, 2014.

[5] ILO, *Guidelines concerning the measurement of forced labour*, 2018; Protocol of 2014 to the Forced Labour Convention, 1930.

Category	Data items or topics
Employment and working conditions	Employment type (full-time, part-time or seasonal), occupation, status in employment, details of the fisher's work agreement (written or oral) and duration of the agreement; nature of the job (formal or informal); employment-related income (types of pay, including wages, share of the catch, payment in kind, for example provision of accommodation, food and water, frequency of payment, amount and deductions); working time arrangements, including working hours and rest periods; trade union membership; collective agreement coverage; social security coverage; recruitment processes (direct hiring or labour recruiter); recruitment fees and related costs incurred
Occupational safety and health	Occupational incidents or accidents, injuries or diseases, disaggregated by severity (for example, fatal or non-fatal, permanent or temporary incapacity); exposure to occupational hazards (including physical, chemical, ergonomic and psychosocial hazards); access to personal protective equipment; emergency preparedness; training in safety procedures; availability of medical care on board; and mechanisms for reporting unsafe conditions and work-related violence and harassment
Fisheries sector	Type of fishing (industrial, artisanal, coastal or deep-sea); vessel characteristics, such as vessel size and gear type; fishing area; and trip duration
Exploitation	Cases of child labour, forced labour and trafficking in persons

Sources of data

10. To meet the above data needs, multiple data sources should be considered, including flag State and port-based registration records, labour recruiters in countries of origin and destination, fishing sector-specific surveys, rapid assessments and other qualitative studies, reports of inspections of labour conditions on board fishing vessels, industry reports and on-board observers.

11. Mandatory flag State registration, as well as port-based registration at landing sites, fishing ports and harbours can help to systematically monitor the number of persons employed in fishing, including migrant fishers. The implementation of mandatory registration for all fishers, including migrant fishers, with detailed demographic and employment information, would play an important role in improving the availability of data on migrant fishers. The responsibility for generating the statistics should be with an institution of the flag State.

12. In addition, fishing sector-specific surveys targeting fishers in a way that supports comparisons between migrant and non-migrant fishers can serve to generate detailed statistics on the employment and working conditions of those fishers, including those in informal employment or in irregular situations. When conducted at regular intervals (every three to five years), such surveys can help monitor trends over time.

13. Rapid assessments, risk assessments and other special studies conducted with the participation of fishers, vessel owners and labour recruiters may also be used to generate qualitative insights into working conditions, including the detection of cases of forced labour.

14. The ILO has developed and piloted a set of survey tools to assess decent work in marine fishing, including the occurrence of serious violations of the fundamental principles and rights at work such as child labour, forced labour and trafficking. [6] These tools include a questionnaire for fishers who are employed on vessels that dock in coastal areas of the country where the survey is being conducted. The survey covers both national and migrant fishers and includes within its scope both national-flagged and foreign-flagged vessels and industrial, commercial and artisanal vessels of varying sizes and types. It enables the measurement of any recruitment fees or related costs paid by fishers, as well as the calculation of Sustainable Development Goal indicator 10.7.1 ("Recruitment cost borne by employee [the migrant fisher] as a proportion of monthly income earned in country of destination"). The survey tools are made available as a public good to national statistical offices, government institutions and research bodies interested in measuring decent work in marine fishing. The ILO provides technical support to its constituents wishing to conduct such a survey in their own country.

15. Reports of inspections of labour conditions on board fishing vessels are instrumental to producing statistics on OSH, including on non-fatal and fatal occupational injuries and diseases affecting fishers.

16. Meanwhile, government labour agencies, national statistical offices, maritime authorities and fisheries departments should be required to submit regular employment reports drawing upon the administrative data that they collect.

17. In addition, digital and remote sensing technologies, including mobile applications and electronic monitoring systems, can support more efficient and transparent data collection. Real-time monitoring through digital tools such as vessel tracking systems, biometric registration and mobile applications such as the FAO's generic database OPEN ARTFISH [7] can further enhance the accuracy and timeliness of data. [8]

Data protection and ethical considerations

18. Given the sensitivity of personal and employment data, strong data protection measures should be implemented. All data collection efforts should adhere to the UN Fundamental Principles of Official Statistics and comply with national and international privacy laws to safeguard fisher identities and prevent the unauthorized use of information.

19. Personal data belong to the fisher concerned. Informed consent is a fundamental principle of ethical data collection. Migrant fishers should be fully aware of how their data will be used and should voluntarily agree to participate in surveys and interviews. Anonymization should be employed when publishing statistics to prevent the identification of individuals, and access to sensitive data should be limited to authorized personnel only. In addition, grievance mechanisms should be available for migrant fishers to report any misuse of their personal data or inaccuracies in official records. Data protection laws apply in relation to the rights of the owners of personal data and the corresponding obligations of those processing the data.

[6] ILO, "Decent work in marine fishing questionnaires", 2025.

[7] FAO, *OPEN ARTFISH and the FAO ODK mobile phone application: A toolkit for small-scale fisheries routine data collection*, 2017.

[8] ILO, *Fishers first: Good practices to end labour exploitation at sea*, 2016.

Entities involved in data collection

20. Several key stakeholders need to collaborate to ensure the effective collection, analysis and use of data on migrant fishers. National governments play a central role, with ministries of fisheries, maritime and labour overseeing employment regulations. National statistical offices should ensure data consistency, while border control and immigration authorities should monitor migration patterns and work permit issuance. Fostering cooperation between different branches of government to share data and streamline records will be central to ensuring data coherence.

21. The private sector, including fishing vessel owners, labour recruiters and seafood companies, should also contribute by providing employment data and complying with labour protections. Trade unions, cooperatives and civil society organizations play a crucial role in advocating for fair labour practices and reporting cases of exploitation. In addition, universities and research institutions should be engaged in independent studies to provide further insights into the dynamics of fishers' migration pathways and characteristics.

22. Harmonizing data collection in line with existing international standards, for example as determined by the ICLS, will be necessary to ensure the international comparability, consistency and completeness of the statistics produced. Organizations such as the ILO and the FAO have responsibility for developing standardized methodologies; the ILO can monitor compliance with relevant international labour standards, including Convention No. 188. Other relevant entities include the International Organization for Migration and the International Maritime Organization, which regulate migration and safety policies affecting fishers.

International cooperation

23. Beyond cooperation with international organizations that develop international statistical standards and guidelines, international cooperation should be fostered among States of recruitment, States of origin, flag States, port States and coastal States. Countries that employ large numbers of migrant fishers should establish agreements with States of origin and States of recruitment to share data and enforce labour protections. Transparency and public reporting of workforce statistics should also be encouraged, to hold industry stakeholders accountable for fair labour practices.

24. Digital data collection systems should be prioritized, including the development of a global database managed by an international fisheries body. Such a system would integrate national reporting structures and allow real-time access to aggregated statistics for policymakers and researchers. Investment in training programmes for port authorities, labour, maritime and fisheries inspectors, and on-board observers will also be necessary to build technical expertise in data collection and reporting.

Conclusion

25. A well-structured data collection system for migrant fishers is essential for promoting equitable labour practices, ensuring regulatory compliance and enhancing fisheries governance. The present guidance calls for harmonized data collection in line with existing international standards, increasing collaboration between government and industry, investing in digital data systems and strengthening labour protections.

26. To achieve these objectives, national governments and international organizations should collaborate to develop and implement standardized methodologies and establish reporting mechanisms. The fishing industry should also commit to ethical labour practices by providing

accurate workforce data and adhering to fair recruitment principles and guidelines.[9] By integrating data on the characteristics of fishers, including migrant fishers, into fisheries management policies, stakeholders can contribute to a more sustainable and socially responsible seafood industry. These efforts will ensure that migrant fishers receive the recognition, protection and fair treatment they deserve while strengthening the fishing sector's resilience and integrity.

[9] ILO, *General principles and operational guidelines for fair recruitment and Definition of recruitment fees and related costs*, 2019.